IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON — JUVENILE DEPARTMENT

Case No.: **25JU04261**

In the Matter of AL-MIRA DAVIS
DOB: June 23, 2011
A Child. Filed By: AshLe' Penn, Mother,

Appearing by Special Appearance, *In Propria Persona*

NOTICE OF MOTION

NOTICE OF MOTION

TO: The Oregon Department of Human Services, Child Welfare Division; the Guardian ad Litem; and all parties of record: PLEASE TAKE NOTICE that Mother AshLe' Penn, appearing specially and *in propria persona*, moves this Court for an order granting the following relief pursuant to the statutes and rules cited in the accompanying Memorandum and Motion:

(1) Striking all placement and removal orders entered in this proceeding, on the grounds that this Court lacks personal jurisdiction over Mother pursuant to ORS 419B.803(1)(a) (providing that the court acquires jurisdiction over a party only through service as provided in ORS 419B.812 to 419B.839) and ORS 109.717 (providing that a child custody determination binds only persons served in accordance with Oregon law or who have submitted to jurisdiction), and on the additional independent grounds set forth in the accompanying Motion;

(2) Sustaining Mother's written objection to referee jurisdiction under ORS 419A.150 (requiring written consent of a party before a matter may be heard by a referee), filed September 8, 2025, and ordering all further proceedings before a duly elected or appointed circuit court judge;

(3) Setting the enforceability question for priority hearing pursuant to ORS 109.721 (mandating that a jurisdictional question raised under the UCCJEA be given calendar priority and handled expeditiously) before any further proceedings on the merits;

(4) Ordering DHS to produce all records responsive to Confirmation ID #36508 and the complete case file pursuant to ORS 419A.255 (requiring DHS to make case records available to parents upon request, without condition of court appearance or judicial approval);

(5) Taking judicial notice, pursuant to ORS 419B.812 (requiring service of the summons within thirty days of filing of the petition) and ORS 419B.803(1)(a), that no summons or petition has been served upon

Mother in compliance with the statutory requirements governing personal jurisdiction in dependency proceedings; and

(6) Ordering the immediate return of Al-mira Davis to Mother's care.

SPECIAL APPEARANCE NOTICE: This appearance is a special appearance only. It does not constitute a general appearance, submission to jurisdiction, or waiver of any jurisdictional objection previously raised or raised herein. Mother expressly preserves all objections. *See* ORS 419B.803(1)(a); ORS 109.717. Dated:

_____

_____



/s/
AshLe' Penn, Mother

Appearing *In Propria Persona*

Special Appearance Only

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON — JUVENILE DEPARTMENT

In the Matter of AL-MIRA DAVIS
DOB: June 23, 2011
A Child. Filed By: AshLe' Penn, Mother,

Appearing by Special Appearance, *In Propria Persona*

Case No.: **25JU04261**

MOTHER'S POST-HEARING OMNIBUS MOTION TO STRIKE PLACEMENT AND REMOVAL ORDERS; OBJECTION TO REFEREE JURISDICTION; MOTION TO VACATE; MOTION TO COMPEL RECORDS; RENEWED MOTION FOR REHEARING; RENEWED JURISDICTIONAL OBJECTION

Oral Argument Requested: 30 Minutes
***See* UTCR 5.060(1) (authorizing request for oral argument)**
Court Reporter Requested
Remote Appearance Requested
***See* ORS 1.460; ORS 419B.918; Washington County Presiding Judge's Order No. 343 on Remote Proceedings (Feb. 15, 2024)**

SPECIAL APPEARANCE NOTICE: This motion is filed by special appearance only. Nothing herein constitutes a general appearance, submission to jurisdiction, or waiver of any jurisdictional objection previously raised or raised herein. Mother expressly preserves all such objections. *See* ORS 419B.803(1)(a) (providing that personal jurisdiction over a party requires service as provided in ORS 419B.812 to 419B.839); ORS 109.717 (providing that a child custody determination binds only persons served in accordance with Oregon law or who have submitted to jurisdiction); ORS 419B.803(2) (subjecting juvenile court jurisdiction in child custody matters to ORS 109.701 to 109.834).

I. MOTION AND GROUNDS

Mother AshLe' Penn, appearing specially and *in propria persona*, moves this Court for an order granting the following relief on the following grounds:

1. **Strike All Placement and Removal Orders.** The September 8, 2025 shelter order and all subsequent placement and removal orders are void or voidable on multiple independent grounds, each sufficient standing alone: (a) absence of personal jurisdiction over Mother, because ORS 419B.803(1)(a) conditions the court's jurisdiction over a party exclusively on service as provided in ORS 419B.812 to 419B.839, and service has not been accomplished; (b) non-enforceability under ORS 419B.803(2) and ORS 109.717, which together provide that juvenile court child custody determinations bind only persons served in accordance with Oregon law or who have submitted to jurisdiction — Mother has done neither; (c) untimely service under ORS 419B.812 (requiring service

within thirty days of filing of the petition); (d) entry of the shelter order on the basis of a materially false statement of fact; and (e) failure to make reasonable efforts as required by ORS 419B.340 (requiring reasonable efforts to prevent removal and to reunify the family) and OAR 413-040-0006.

2. **Sustain Objection to Referee Jurisdiction.** ORS 419A.150 requires a party's written consent to referee adjudication. Mother objected in writing on September 8, 2025. That objection was not docketed and has never been ruled upon. Every order entered by a referee after that date was entered over a timely, unresolved, written objection. The objection must be sustained and all further proceedings conducted before a duly elected or appointed circuit court judge.

3. **Adjudicate Jurisdictional Enforceability on Priority Basis.** ORS 109.721 provides that when a party raises a jurisdictional question under the UCCJEA, the court shall give the question priority on the calendar and handle it expeditiously" — a mandatory obligation under *State v. Gaines*, 346 Or 160, 171, 206 P3d 1042 (2009) (holding that courts must give effect to every statutory provision and avoid readings that render any provision superfluous). Mother raised the jurisdictional question on September 8, 2025. It has never been adjudicated. It must be resolved first.

4. **Vacate Shelter Order Based on False Statement of Fact.** At the September 8, 2025 shelter hearing, a CPS worker stated on the record that Mother had refused a safety plan. That statement was false: no safety plan was offered to Mother prior to October 1, 2025 — twenty-five days after removal. *See Mooney v. Holohan*, 294 US 103, 112, 55 S Ct 340 (1935) (holding that due process forbids the state from obtaining a judgment through deliberate deception, whether in criminal or civil proceedings in which the state is a party).

5. **Compel Production of Case Records.** ORS 419A.255 requires DHS to maintain case records and make them available to parents upon request, without condition of court appearance or judicial approval. Records request Confirmation ID #36508, submitted December 22, 2025, has remained unanswered for more than three months. Production must be ordered.

6. **Find Failure of Mandatory Pre-Removal Compliance and Failure of Reasonable Efforts.** Before taking protective custody without a court order on September 6, 2025, DHS was required by its own mandatory rules to: (a) determine whether a present danger or impending danger safety threat existed under OAR 413-015-0425 (requiring specific criteria before exercising protective custody); (b) obtain supervisor consultation under OAR 413-015-0415 (requiring supervisor consultation prior to

the protective custody decision); and (c) ensure that removal was necessary to prevent imminent physical damage or harm under OAR 413-015-0455 (authorizing protective custody without a court order only upon that specific finding). None of these requirements was satisfied in the nineteen minutes between 5:40 PM and 5:59 PM on September 6, 2025. DHS has also conditioned reunification services on Mother's waiver of her jurisdictional objection, in violation of ORS 419B.340(1) (imposing a mandatory obligation to make reasonable efforts to prevent removal and to reunify the family).

7. **Appoint Counsel for Mother.** ORS 419B.195(1) provides that the court shall appoint counsel for a parent who appears at a dependency proceeding without counsel. No counsel has been appointed. Immediate appointment is required.

8. **Appoint Independent Counsel for Al-mira Davis.** ORS 419B.195(3) authorizes appointment of counsel for a child when the court finds it in the child's best interest. Under *State ex rel Juv. Dept. v. Cowens*, 143 Or App 68, 74, 922 P2d 1258 (1996) (holding that the state's interests are adverse to the child's interests when the state files a dependency petition seeking to interfere with the parent-child relationship), DHS does not represent Al-mira's interests. Al-mira requires independent representation.

9. **Order Immediate Return of Child.** DHS has not filed, and has not served on Mother, any petition alleging that Mother is unfit, abusive, or neglectful. The state has not met its burden to show reasonable cause for continued custody under ORS 419B.150 (requiring the court to find reasonable cause to believe the child is in danger before continuing shelter custody) and ORS 419B.183 (requiring findings at each review hearing that continued custody is necessary). Dependency jurisdiction requires evidence of a *current* threat of serious loss or injury likely to be realized. *Dept. of Human Services v. A. W.*, 276 Or App 276, 278, 367 P3d 556 (2016). That burden has not been met. Al-mira Davis must be returned to Mother's care immediately.

This motion is supported by the accompanying Memorandum in Support, the Declaration of AshLe' Penn, the Affidavit of Non-Service, and the exhibits attached thereto. Dated:

_____ _____

AshLe' Penn

Mother, Appearing *In Propria Persona* (Dependency)

Special Appearance Only

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON — JUVENILE DEPARTMENT

In the Matter of AL-MIRA DAVIS
DOB: June 23, 2011
A Child. Filed By: AshLe' Penn, Mother,

Appearing by Special Appearance, *In Propria Persona*

Case No.: **25JU04261**

MEMORANDUM IN SUPPORT OF MOTHER'S POST-HEARING OMNIBUS MOTION TO STRIKE PLACEMENT AND REMOVAL ORDERS; OBJECTION TO REFEREE JURISDICTION; MOTION TO VACATE; MOTION TO COMPEL RECORDS; RENEWED MOTION FOR REHEARING; RENEWED JURISDICTIONAL OBJECTION
Remote Oral Argument Requested: 30 Minutes
***See* UTCR 5.060(1); ORS 1.460; ORS 419B.918**
Court Reporter Requested
Remote Appearance Requested

I. SPECIAL APPEARANCE AND JURISDICTIONAL STATEMENT

1. Mother appears in this proceeding solely by special appearance. She appeared specially in her September 8, 2025 written filing, which stated: I hereby appear specially and object to this matter being heard by a juvenile court referee under ORS 419A.150." Nothing in this motion, and no act taken by Mother in connection with this proceeding, constitutes a general appearance, a submission to jurisdiction, or a waiver of any jurisdictional objection.
2. The statutory basis for the jurisdictional objection is specific. ORS 419B.803(1)(a) provides that a juvenile court having subject matter jurisdiction has jurisdiction over a party who has been served in the matter as provided in ORS 419B.812 to 419B.839." That language is the exclusive statutory predicate for personal jurisdiction over a party. It is not satisfied here: caseworker David Milne admitted on recorded calls on December 8, 2025 and December 25, 2025 that service had not been accomplished, and the first service attempt did not occur until October 14, 2025 — thirty-six days after the statutory deadline imposed by ORS 419B.812.
3. ORS 419B.803(2) further provides that juvenile court jurisdiction in child custody matters is subject to ORS 109.701 to 109.834." That language is subordinating: it means the UCCJEA framework governs and constrains dependency custody determinations. ORS 109.706(3) defines child custody determination" to include any order providing for legal or physical custody of a child. The September 8, 2025 shelter order transferred physical custody of Al-mira from Mother to DHS — it is a child custody determination within that definition. ORS 109.717 then provides that a child custody determination binds all persons who have been served in accordance with the laws of this state … or

who have submitted to the jurisdiction of the court." Mother has been neither served nor has she submitted. A contrary reading would render ORS 419B.803(2)'s cross-reference to the UCCJEA a nullity — a result courts are required to avoid. *See State v. Gaines*, 346 Or 160, 171, 206 P3d 1042 (2009) (holding that courts must give effect to every provision of a statute and avoid readings that render any provision superfluous).

4. Mother raised the jurisdictional service defect in the September 8, 2025 filing, submitted to the clerk of court at 1:44 PM — before the shelter hearing concluded. The clerk received the filing. The clerk did not docket it. On September 9, 2025, Juvenile Case Processing Clerk Kimberly Beck sent Mother a written email stating:[1]

> Your personal appearance was required for the shelter hearing on September 8, 2025, and you failed to appear. Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements.

5. Clerk Beck's email confirms that the filing was received and was deliberately not processed. The stated basis has no statutory foundation. ORS 419B.812 requires service before appearance can be compelled. A person who has not been served cannot be required to appear in person as a condition of filing a written objection. The clerk's rejection of Mother's filing has no basis in the statute as applied to an unserved party. *See* ORS 419B.815(8) (providing that where personal appearance is required, the person may not appear through the person's attorney — a fortiori, an unserved party cannot be required to appear in person as a condition of written participation).

6. Oregon law expressly provides that a written answer to a dependency petition is the statutory default response method, ORS 419B.815(2)(c) and (3); that written and oral responses are equivalent, ORS 419B.869; and that telephonic or electronic participation in any ORS 419B.100 hearing constitutes appearance, ORS 419B.918 — yet the court clerk rejected Mother's written filing as insufficient, without citation to any authority, in direct contradiction of all three statutes and the presiding judge's own standing order on remote proceedings. *See* Washington County Presiding Judge's Order No. 343 on Remote Proceedings, signed February 15, 2024 (Exhibit K) (providing that Webex sessions will be generated for all hearings and that juvenile proceedings may be held remotely without a motion, upon advance notice).

7. The question presented here is not whether this Court has subject matter jurisdiction over Al-mira Davis as a child physically present in Oregon under ORS 419B.100(1). It does. The question is

[1] A true and correct copy of that email is attached hereto as Exhibit F.

whether orders entered in this proceeding are *enforceable against Mother* — a distinct question governed by ORS 419B.803(1)(a) and ORS 109.717. This distinction is not a technicality. It reflects the Legislature's deliberate choice to require service as the predicate for personal jurisdiction over a party and the UCCJEA's deliberate requirement that custody determinations bind only those brought within the court's jurisdiction through lawful process or voluntary submission.

8. Mother also objects, as she did in her September 8 filing, to this matter being heard by a referee. ORS 419A.150 requires a party's written consent to referee adjudication. Mother did not consent. She objected in writing on September 8, 2025. That objection was not docketed. It has never been ruled upon. It remains pending and is renewed here.

II. INTRODUCTION

9. The factual record in this proceeding begins with a single written admission. On Saturday, September 6, 2025, at 5:40 PM, DHS Supervisor Heather Kitto texted Mother from the agency's number, (503) 757-3830, stating that DHS workers had been trying to reach Mother so that we can release custody to you."[2] At 5:59 PM — nineteen minutes later — Supervisor Kitto reversed that position, based on an unverified statement that Al-mira had expressed suicidal intent if returned to Mother's care. The full factual account of what occurred in those nineteen minutes, and what the agency did and did not do, is set forth in Section III.C below. What the 5:40 PM text establishes, on its face, is that at that moment DHS had determined there was no founded danger from Mother sufficient to withhold custody of Al-mira.

10. What DHS did not consider — and the record shows was never assessed — is that Mother holds a Certification in Suicide Prevention — Diagnosis and Treatment. The parent DHS excluded from any assessment, consultation, or safety planning is credentialed in exactly the area the agency invoked to justify removal. The full account of Mother's credentials and their relevance is set forth in Section III.B below.

11. What followed is a sequence of compounding procedural and statutory violations: a shelter hearing held without notice to Mother; a written filing by Mother submitted at 1:44 PM on September 8, 2025 rejected without docketing; a false statement by a CPS worker at the shelter hearing that Mother had refused a safety plan when no plan had been offered; a summons not attempted until thirty-eight days after the statutory deadline; three months of non-service admitted on recorded calls by the agency's

[2] *See* Exhibit A.

own caseworker; reunification services conditioned on Mother's waiver of her jurisdictional objection; records access denied pending judicial approval that has no statutory basis; and an agency representative who, when asked to account for the agency's conduct, stated that he believed the agency had acted in accordance to the directions of the court." That statement is an admission that DHS made no independent assessment of its statutory obligations and outsourced those obligations to court orders. *See State ex rel DHS v. Rardin*, 338 Or 399, 403, 110 P3d 580 (2005) (holding that the reasonable efforts requirement is a substantive statutory requirement that must be evaluated on its own terms, not discharged by following court orders).

12. Under Oregon law, DHS is a creature of statute whose authority derives entirely from the powers the Legislature has provided. *See* ORS 418.005 (defining the Department's powers and duties in connection with child welfare services as those provided by statute and rule). When the agency acts outside those boundaries — when it removes a child without satisfying the mandatory pre-removal requirements of OAR 413-015-0415, OAR 413-015-0425, and OAR 413-015-0455; when it conditions a statutory right on waiver of a jurisdictional objection; when it keeps a child from a fit parent without any founded allegation; when it fails to serve a parent and then conditions all statutory rights on submission to a hearing that parent had no lawful way to attend — it acts without authority.

13. The six independent failures that converge in this proceeding are not a list of procedural complaints. They are a structural incoherence. The sole predicate for protective custody was a single unverified statement attributed to Al-mira. That statement was retracted before the shelter hearing. The court was not told. The statement does not, in any event, constitute evidence of dangerous parental conduct or lack of parenting capacity — the two verbally stated grounds for dependency jurisdiction — because no assessment was ever conducted to connect the statement to either ground. The agency's own text at 5:40 PM proves DHS made no danger finding as to Mother before the removal. Mother's relative Mark was present at the hospital and available as a placement alternative; DHS refused to assess him, then placed Al-mira with him the next morning. Mother was not served despite available means of communication the agency was already using. Her written filing was rejected by a clerk without statutory authority, in contradiction of ORS 419B.815(2)(c), ORS 419B.869, and ORS 419B.918, and in disregard of Presiding Judge Guptill's Order No. 343, which mandated Webex sessions for all hearings — a session that was generated but never offered to Mother. The court then constructed a non-appearance narrative on the basis of that unauthorized administrative act. Non-appearance does

not supply proof of Ground A or Ground B. The warrant from a separate proceeding is not a dependency ground. What remains when each layer is examined is a proceeding that has perpetuated itself by treating Mother's lawful written participation as non-appearance, thereby avoiding the evidentiary confrontation that would expose DHS's inability to prove either petition ground.

III. STATEMENT OF FACTS

A. Background

14. This is not the first time DHS has removed Mother's children. In 2020, DHS removed Mother's children based on her status as a domestic violence victim. DHS never alleged that Mother abused or neglected her children. DHS's own reports from that period consistently noted Mother's parenting abilities.

15. Al-mira and her siblings remained with their father following the 2020 proceedings. In April 2024, charges were filed against the father. DHS maintained Al-mira's placement and contact with the father even after those charges were filed. The agency cannot now allege failure to protect against Mother when DHS itself placed and maintained Al-mira with the father while charges were pending against him.

16. DHS has never alleged, in any petition filed with and served on Mother, that Mother is unsafe, abusive, or neglectful. The sole stated basis for the 5:59 PM reversal on September 6, 2025 was an unverified statement about suicidal ideation that was not assessed by any clinical professional, was not evaluated in light of Mother's credentials, and was subsequently retracted.

B. Mother's Credentials in Suicide Prevention

17. Mother holds a Certification in Suicide Prevention — Diagnosis and Treatment. That certification specifically trained her to identify risk and protective factors for suicidality, evaluate intergenerational and family history of suicide, assess situational triggers, and distinguish risk factors for youth populations. The sole basis for the 5:59 PM reversal was a report of Al-mira's suicidal ideation. DHS did not assess Mother's capacity to respond to that risk. DHS excluded the one parent who holds specialized training in exactly the area the agency invoked to justify removal.

C. The Agency's Own Texts Establish No Founded Danger From Mother as of 5:40 PM

18. On Saturday, September 6, 2025, at 5:40 PM, DHS Supervisor Heather Kitto sent the following text message to Mother from telephone number (503) 757-3830:

> *Hello, this is Heather Kitto — Supervisor with ODHS Child welfare urgently trying to reach you regarding your daughter who has been taken into protective custody and is [at] the hospital. My workers Wiengkhone and Nicole Bennett have been trying to reach you to assist with a ride to the hospital so that we can release custody to you. It's urgent that you return*

one of our calls as soon as possible so that we can make those arrangements.[3]

19. At 5:59 PM — nineteen minutes later — Supervisor Kitto sent a second text message from the same number:

> *Please do call. We've received new information that your child has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody while we assess these concerns and she will not be released to your custody tonight.*

20. The 5:40 PM text is the agency's own written admission that, at that moment, DHS had determined there was no founded danger from Mother sufficient to withhold custody. The agency was actively arranging Al-mira's return, coordinating transportation, and directing workers to facilitate Mother's arrival.

21. In the nineteen minutes between 5:40 PM and 5:59 PM, DHS did not: conduct a protective capacity assessment of Mother; offer a safety plan; consult a clinical professional regarding Al-mira's reported statement; determine whether a present danger or impending danger safety threat existed as required by OAR 413-015-0425; obtain supervisor consultation prior to the protective custody decision as required by OAR 413-015-0415; assess Mother's capacity to manage the identified risk in light of her suicide prevention credentials; or contact Mother to discuss the statement or give her an opportunity to respond.

22. Before DHS exercised protective custody without a court order, OAR 413-015-0455(1) required that the removal be necessary to prevent *imminent physical damage or harm* to the child. *See also Wallis v. Spencer*, 202 F3d 1126, 1138 (9th Cir 2000) (holding that officials may remove a child from the custody of its parent without prior judicial authorization only if the information they possess at the time of the seizure is such as provides reasonable cause to believe that the child is in imminent danger of serious bodily injury and that the scope of the intrusion is reasonably necessary to avert that specific injury"). A reversal based on an unverified, unassessed statement, made within nineteen minutes of the agency's own written determination that custody would be released, does not satisfy that standard.

23. Mother's relative Mark was present at the hospital on the evening of September 6, 2025, prior to protective custody being formally exercised. He was there at Mother's direction, as a mitigating resource. Under OAR 413-015-0420, available relatives must be considered as placement resources before removal. DHS did not assess Mark as an alternative to removal before taking custody. DHS placed Al-mira with Mark the following morning — confirming that he was a viable resource that DHS

[3] A true and correct copy of this text message is attached hereto as Exhibit A.

simply failed to assess before acting. This failure is independently significant: the agency had a placement alternative in the room, declined to assess it, exercised protective custody, and then used that same alternative the next morning. The sequence establishes that removal was not necessary even on the agency's own subsequent conduct.

24. Al-mira subsequently retracted and denied the statement attributed to her in the 5:59 PM text. She denied it directly to Mother during a phone call. DHS terminated that call while Al-mira was in the process of making that denial.

25. At 7:02 PM on September 6, 2025, Supervisor Kitto sent a third text confirming that DHS was aware of Mother's communication preferences and had emailed her, establishing that DHS possessed the means to reach Mother by email throughout this proceeding.

26. On Sunday, September 7, 2025, at 10:05 AM, Supervisor Kitto sent a text message stating:

> *Hello, she is still at the hospital, and we will be working to try to place her in your relatives home who visited last evening — Mark who volunteered to be a placement resource and certifying them as a foster parent today. In my email I requested if you had any other relatives you wished for the agency to consider for placement. Please let us know via response to that email. A worker will be coming to your home today with the court summons.*

27. This text confirms: DHS placed Al-mira with Mark — Mother's relative, identified by Mother the night of the removal — while simultaneously excluding Mother from the placement decision and from the shelter hearing. The September 7 text also states that a worker would deliver the court summons that day. That worker did not appear. The summons was not served. *See* ORS 419B.812 (requiring service within thirty days of filing of the petition).

D. The Allegations Are Not in Any Petition Served on Mother

28. Mother has been informed verbally by DHS personnel that the current allegations are: (1) one or both parents lack the capacity to parent; and (2) one or both parents are acting dangerously. These allegations have not been set forth in any petition filed with and served upon Mother. A parent cannot be adjudicated on the basis of allegations of which she has received no formal notice. *See State ex rel Dept. of Human Services v. J.R.L.*, 256 Or App 437, 448, 304 P3d 619 (2013) (holding that to avoid affecting the substantial rights of a parent, a juvenile court cannot base its jurisdictional decision on facts that depart from the petition or jurisdictional judgment when neither the petition nor the jurisdictional judgment would put a reasonable parent on notice").

29. These verbal allegations are facially inconsistent with the agency's own contemporaneous written

record. At 5:40 PM on September 6, 2025, DHS concluded in writing that there was no founded danger from Mother and was arranging to release Al-mira to her care. An allegation of dangerous parenting cannot be reconciled with a simultaneous written decision to release the child to that parent.

30. To establish dependency jurisdiction, DHS must present evidence sufficient to support a finding that the child faces a *current* threat of serious loss or injury that is likely to be realized. *Dept. of Human Services v. A.W.*, 276 Or App 276, 278, 367 P3d 556 (2016) (holding that dependency jurisdiction requires proof of a current, not merely past, threat to the child's welfare; a historical condition does not establish present jurisdiction). A single unverified, unassessed, subsequently retracted statement does not constitute legally sufficient evidence of a current threat, particularly where the agency's own contemporaneous written record establishes that DHS itself had determined no such threat existed from Mother.

E. The Warrant From a Separate Proceeding

31. Mother has an active arrest warrant arising from a separate criminal proceeding that she is actively contesting on constitutional grounds. That warrant is not alleged in any dependency petition served on Mother. It is not a finding of parental unfitness. It is not a finding of danger to Al-mira. It has no legal relationship to either the original basis for protective custody or the verbally stated bases for dependency jurisdiction. The agency has used the warrant operationally — as a barrier to Mother's physical appearance at the courthouse — without alleging it as a jurisdictional basis, without any finding of danger to Al-mira, and without any petition serving it on Mother.

F. September 8, 2025: The Shelter Hearing

32. The shelter hearing was held on September 8, 2025. Mother received no notice of the hearing. Mother was not served with a summons prior to the hearing.

33. Notwithstanding her lack of notice, Mother prepared a written filing on September 8, 2025, and submitted it to the clerk of court at 1:44 PM — before the hearing concluded. Through that filing, Mother: (a) appeared specially and objected to referee jurisdiction under ORS 419A.150; (b) identified barriers to in-person appearance; (c) noted the absence of appointed counsel under ORS 419B.195; (d) set forth the factual background; (e) identified her suicide prevention certification; (f) identified DHS's failure to conduct any pre-removal assessment or make reasonable efforts; (g) identified the false safety plan statement; and (h) demanded immediate placement with Mother.[4]

34. The clerk received the filing. The clerk did not docket it. The filing was received and deliberately not processed pursuant to the clerk's ministerial duty. *See* ORS 419B.812; ORS 419B.815 (governing

[4] A true and correct copy of this filing is attached hereto as Exhibit I.

service and appearance in dependency proceedings and providing no authority to condition written filing by an unserved party on in-person appearance).

35. At the September 8 shelter hearing, a CPS worker stated on the record that Mother had refused a safety plan. That statement was false. No safety plan had been offered to Mother as of September 8, 2025. The first documented safety plan offer did not occur until October 1, 2025 — twenty-five days after removal. A parent cannot refuse what has not been offered.

36. A DHS supervisor — Sonya Faulkner, a member of DHS central office leadership — has acknowledged on a recorded call that the agency possesses evidence that the statement attributed to Al-mira at 5:59 PM — the foundational basis for protective custody — was recanted. Al-mira has told Mother directly that she never made that statement. Faulkner stated, at transcript time 19:18: once there was a recantation for that to be considered," and at transcript time 20:08: even given the recantation" — treating the recantation as settled fact in her own case review. The agency proceeded with the dependency petition and the shelter hearing while possessing knowledge that its foundational basis for removal was either fabricated or recanted.[5]

37. Attorney Ireland Mahoney appeared at the September 8 shelter hearing in a capacity that was not authorized by Mother. On September 15, 2025, in a recorded call, attorney Mahoney stated: That was a mistake because I'm not yet your lawyer. I was contacting you the day of the shelter because I was representing you on that day, but I was not formally appointed to your case."[6] An unauthorized appearance by counsel does not constitute submission to jurisdiction by the client. *See Dept. of Human Services v. S.C.T.*, 281 Or App 246, 253, 381 P3d 271 (2016) (holding that where personal appearance is required in a dependency proceeding, parents' attorneys cannot appear on parents' behalf). Mother expressly disavows any appearance by Mahoney at the September 8 hearing.

G. Untimely Service

38. ORS 419B.812 requires that a summons be served within thirty days of the filing of a dependency petition. The petition was filed in connection with the September 8, 2025 shelter hearing. The thirty-day statutory deadline expired on or about October 8, 2025.

39. The first service attempt did not occur until October 14, 2025 — thirty-six days after the statutory deadline. This is established by Mother's statement in the December 8, 2025 recorded call with caseworker David Milne, which Milne did not dispute. Milne's subsequent service attempts consisted, by his own account, of leaving a business card at Mother's door with a handwritten note asking her to

[5] A true and correct copy of the Faulkner call recording and transcript is attached hereto as Exhibit J.
[6] *See* Exhibit E.

call. That is not service of process under any method authorized by ORS 419B.825 (specifying the authorized methods of service in dependency proceedings, including personal delivery and, under specified conditions, substitute service).

H. December 8, 2025: Caseworker Milne's Recorded Admissions

40. On December 8, 2025 — three months after Al-mira's removal — caseworker David Milne admitted on a recorded call that service had not been accomplished: And I just said that, you know, we've got to serve mum papers, but, you know, at this time we've been unable to serve your mom papers." He then asked Mother to schedule a time for him to serve her.[7]

41. Milne stated in the same call: I believe that all these records would have been given to you had you appeared in court." That statement directly contradicts ORS 419A.255, which requires DHS to make case records available to parents upon request without conditioning that access on court appearance.

42. Milne also stated that reunification services would begin only after Mother accepted service and appeared in court: … in order for us to work with you, the expectation is that you go to court. And once we do that, then we can start working with you … if the mom accepts the papers … then they go to court and then we can start working with you with regards to reunification."

43. In the same call, Mother stated explicitly and on the record: I want to accept service. Let's get this clear. I want to accept service." Mother's willingness to accept service is on the record. The agency's failure to serve her is not attributable to evasion.

44. Milne also stated in the December 8 call that DHS had communicated to Al-mira that reunification was contingent on Mother going to court. DHS communicated its litigation position to the child, contrary to ORS 419B.090(1)(b) (requiring paramount consideration of the child's best interests in all dependency proceedings) and OAR 413-040-0006 (requiring DHS to act in the child's best interest in all child welfare decisions).

I. December 25, 2025: Second Recorded Admissions

45. On December 25, 2025, Milne again confirmed that service had not been completed: Is there a date, time next week where we can meet and I can serve you with the papers that the court is requiring to be received?"[8]

46. In the same call, Milne stated: I believe the agency has acted in accordance to the directions of the court." That statement is an admission that DHS's conduct has been reactive to court directives rather than grounded in any independent assessment of what reasonable efforts required. *See Rardin*, 338 Or at 403 (holding that the reasonable efforts obligation is the agency's obligation and is not

[7] A true and correct copy of this transcript is attached hereto as Exhibit C.
[8] A true and correct copy of this transcript is attached hereto as Exhibit D.

discharged by following court orders).

47. Mother stated: You told the court that I refused a safety plan that was never offered to me." Milne's response — I, I, I, that's your word" — was not a denial.

48. Mother also stated: I'd like to see whatever assessments that were conducted on me as a parent to measure my parental capacity. I'd like to see the record of DHS attempting to keep my family intact prior to the removal … A safety plan that wasn't offered to me until October 1st." Milne acknowledged the records request. No such records have been produced.

J. The Records Denial

49. Mother submitted a records request for the juvenile dependency case file — records to which she is entitled as a party under ORS 419A.255 (requiring DHS to maintain case records and make them available to parents upon request). The clerk did not produce the records. Mother was informed the records were being held pending the judge's approval.

50. The presiding referee then denied Mother access to the case file and conditioned access on Mother's physical in-person appearance at the courthouse. That condition has no basis in ORS 419A.255 or any other statute. The statute entitles parties to *copies* of case records. It does not require in-person inspection. It does not require judicial approval.

51. The condition is not neutral. Mother has an active arrest warrant in a related criminal proceeding. Physical appearance at the courthouse exposes Mother to arrest on that warrant. Conditioning Mother's statutory right to copies of her own case file on submission to potential arrest is constitutionally impermissible. *See Perry v. Sindermann*, 408 US 593, 597, 92 S Ct 2694 (1972) (holding that the government may not condition a benefit on the requirement that a person relinquish a constitutional right).

52. A referee's authority under ORS 419A.200 *et seq.* is adjudicative. It does not extend to supervising or overriding the clerk's ministerial duty to produce records. *See* ORS 419A.255 (imposing the records-production obligation directly on DHS and the clerk, without reference to judicial approval). The referee's interposition into that ministerial function was an act without legal authority. It was ultra vires.

53. This pattern was confirmed in Mother's call with Trial Court Administrator Richard Moellmer. Mother stated: I requested the juvenile dependency records through a public records request. As a parent, somehow the judge in that case denied me access to the juvenile dependency court file." Moellmer responded: How?" He had no explanation. The court's own administrator could not identify

any authority by which a judge could deny a party access to her own case file.[9]

54. The denial of records access while maintaining jurisdiction implicates independent due process violations. Under *Mathews v. Eldridge*, 424 US 319, 335, 96 S Ct 893 (1976), the risk of erroneous deprivation is at its highest when the party whose liberty interest is at stake cannot see the record on which the state relies. Mother cannot contest what she cannot see. *See In re Gault*, 387 US 1, 33, 87 S Ct 1428 (1967) (holding that due process requires that a party in a proceeding affecting fundamental liberty interests be given access to the record and an adequate opportunity to prepare a response). ORS 419B.875 and ORS 419B.443 independently entitle Mother to case records. The denial of those records, while the state simultaneously maintains custody of her child, is a structural due process violation that compounds every other defect in this proceeding.

K. Confirmation ID #36508

55. On December 22, 2025, Mother submitted a records request assigned Confirmation ID #36508. As of the date of this filing, that request has remained unanswered for more than three months. The agency has not produced records, has not identified any exemption, and has not responded. The records Mother has requested — parental capacity assessments, reasonable-efforts documentation, service records, and records of any safety plan offer made prior to September 8, 2025 — are precisely the records that would establish whether the statutory prerequisites for removal were met.[10]

L. No Services, No Visitation, No Reunification

56. As of the date of this filing, DHS has provided Mother with no services, no visitation schedule, and no reunification plan, in violation of ORS 419B.340(1) (requiring reasonable efforts to prevent removal and to reunify the family). No parental capacity assessment has been conducted. No referrals have been made. No safety plan was offered until October 1, 2025 — twenty-five days after removal.

57. DHS has placed Al-mira with Mark — Mother's relative, from Mother's family network, identified by Mother the night before the removal — while excluding Mother from all contact, all proceedings, and all records. The agency placed Al-mira exactly where Mother said to place her, and then used that placement as a mechanism to exclude Mother from her daughter's life.

M. Federal Compliance and Title IV-E

58. Federal foster care funding under Title IV-E, 42 U.S.C. § 671 *et seq.*, is conditioned on the state maintaining a plan that provides for reasonable efforts to prevent or eliminate the need for removal and to reunify the family. *See* 42 U.S.C. § 671(a)(15) (requiring state plans to provide for reasonable efforts to prevent removal and to reunify families as a condition of federal foster care funding);

[9] A true and correct copy of this transcript is attached hereto as Exhibit G.
[10] A true and correct copy of the records request and confirmation of receipt is attached hereto as Exhibit H.

42 U.S.C. § 671(a)(19) (requiring state plans to provide for relative placement preference). OAR 413-100-0135 sets out the specific Title IV-E removal eligibility requirements, including the requirement that removal be the result of a judicial determination that continuation of residence in the home would be contrary to the welfare of the child. Where a removal is procedurally defective — where the agency failed to satisfy its own mandatory pre-removal rules and no founded allegation was made against the custodial parent — the removal may not qualify for Title IV-E reimbursement. This implicates Oregon's federal assurances, the integrity of the foster care certification under which Al-mira is placed, and the rights of both Mother and Al-mira to the services and protections that Title IV-E funding is intended to ensure.

IV. LEGAL ARGUMENT

A. This Court's Orders Are Not Enforceable Against Mother Under ORS 419B.803(1)(a) and ORS 109.717

59. ORS 419B.803(1)(a) provides that a juvenile court having subject matter jurisdiction has jurisdiction over a party who has been served in the matter as provided in ORS 419B.812 to 419B.839." That language sets out the exclusive statutory predicate for personal jurisdiction over a party in a dependency proceeding. It is not a procedural overlay — it is the Legislature's express statement of what is required before the court may exercise authority over a person.

60. ORS 419B.803(2) provides that juvenile court jurisdiction in child custody matters is subject to ORS 109.701 to 109.834" — a subordinating command that the UCCJEA framework governs dependency custody determinations. The September 8, 2025 shelter order transferred physical custody of Al-mira from Mother to DHS and is a child custody determination" within the definition of ORS 109.706(3) (defining that term to include any order of a court providing for legal or physical custody of a child).

61. ORS 109.717 therefore applies directly: a child custody determination made by a court of this state binds only persons who have been served in accordance with the laws of this state … or who have submitted to the jurisdiction of the court, and who have been given an opportunity to be heard." Caseworker Milne admitted non-service on December 8, 2025 and December 25, 2025, on recorded calls. Mother has executed an Affidavit of Non-Service, filed herewith as Exhibit B.

62. DHS will likely argue that ORS 109.717 applies only to multi-state custody disputes and does not govern dependency proceedings. That argument cannot be squared with ORS 419B.803(2)'s explicit

cross-reference to ORS 109.701 to 109.834. Under *State v. Gaines*, 346 Or 160, 171, 206 P3d 1042 (2009) (holding that courts must give effect to every statutory provision and avoid readings that render any provision superfluous), ORS 419B.803(2) cannot be read as a nullity. The Legislature placed that cross-reference deliberately. It means what it says: dependency custody determinations bind only those who have been lawfully served or who have submitted to jurisdiction.

63. Mother has appeared exclusively by special appearance, preserving her jurisdictional objection in every filing and every communication. Mahoney's appearance at the September 8 hearing was unauthorized and does not constitute submission to jurisdiction. *See Dept. of Human Services v. S.C.T.*, 281 Or App 246, 253, 381 P3d 271 (2016) (holding that where personal appearance is required in a dependency proceeding, parents' attorneys cannot appear on parents' behalf and such an appearance does not satisfy the statutory requirement). Because Mother has not been served and has not submitted, the child custody determinations entered in this proceeding do not bind Mother and are not enforceable against her.

B. The Jurisdictional Question Must Be Given Calendar Priority Under ORS 109.721

64. ORS 109.721 provides that when a party raises a jurisdictional question under the UCCJEA, the court shall give the question priority on the calendar and handle it expeditiously." The word shall" is mandatory. *See State v. Gaines*, 346 Or at 171 (holding that mandatory statutory language creates an obligation the court must fulfill); *see also* ORS 174.010 (providing that in construing statutes, shall" is mandatory and may" is permissive). Mother raised the jurisdictional question in her September 8, 2025 written filing. That filing was not docketed. The jurisdictional question has never been adjudicated. ORS 109.721 requires that question to be resolved first, on a priority basis, before any further proceedings on the merits.

C. The Basis for Protective Custody, the Stated Jurisdictional Allegations, and the Warrant Are Three Legally Distinct Frameworks That Do Not Align and Cannot Substitute for One Another

65. Three separate legal frameworks govern this proceeding, and the agency has treated them as interchangeable. They are not. Each has its own governing law, its own evidentiary standard, and its own required showing. When any one fails, the legal consequence is specific to that framework and cannot be cured by pointing to a different one.

66. **Framework One — The basis for protective custody without a court order.** OAR 413-015-0455(1) provides that a CPS worker may take a child into protective custody without a court order only when the worker has reasonable cause to believe that the child faces *imminent*

physical damage or harm and that taking protective custody is necessary to prevent that harm. *See also* OAR 413-015-0425 (requiring determination of a present danger or impending danger safety threat meeting specific criteria before exercising protective custody); OAR 413-015-0415 (requiring supervisor consultation prior to the protective custody decision); *Wallis v. Spencer*, 202 F3d 1126, 1138 (9th Cir 2000) (holding that officials may remove a child from parental custody without prior judicial authorization only if they have reasonable cause to believe the child is in imminent danger of serious bodily injury and that the scope of the intrusion is reasonably necessary to avert that specific injury).

67. The stated basis for exercising protective custody on September 6, 2025 was a single, unverified statement attributed to Al-mira. That statement: (a) was not assessed by a clinical professional; (b) was not evaluated in light of Mother's credentials in suicide prevention; (c) was acted upon within nineteen minutes of DHS's own written determination that custody would be released to Mother; (d) was not the subject of any supervisor consultation prior to the custody decision; and (e) was subsequently recanted. DHS leadership official Sonya Faulkner acknowledged on a recorded call, at transcript time 19:18, that once there was a recantation for that to be considered," and at transcript time 20:08 referred to even given the recantation" — treating the recantation as settled fact in her own review of the case. Al-mira has stated to Mother that she never made the statement. The foundation for the OAR 413-015-0455 determination was either recanted or never made. Either way, the mandatory pre-removal requirements were not satisfied.

68. The child's self-harm statement, even taken at face value, does not constitute evidence of either petition ground as a matter of law. Ground A — dangerous parental conduct — requires a nexus between parental behavior and danger to the child. A child's statement about her own feelings, made in a clinical or crisis context, is not evidence of dangerous parental conduct absent an assessment connecting the two. Ground B — lack of parenting capacity — requires an evaluation of the parent's ability to meet the child's needs. No such assessment was conducted. DHS acted on the statement without conducting any evaluation that would connect it to either ground. The statement was the predicate for protective custody. It is not, standing alone, a predicate for dependency jurisdiction under either verbally stated ground.

69. **Framework Two — The basis for dependency jurisdiction.** ORS 419B.100(1)(c) provides that the juvenile court has jurisdiction over a child whose condition or circumstances are such as to endanger the welfare of the child or of others. To establish jurisdiction at trial, DHS must present

evidence sufficient to support a finding that the child faces a *current* threat of serious loss or injury that is likely to be realized. *Dept. of Human Services v. A.W.*, 276 Or App 276, 278, 367 P3d 556 (2016) (holding that dependency jurisdiction requires proof of a current, not merely past, threat; a historical condition does not establish present jurisdiction).

70. The verbally communicated allegations — that one or both parents lack parenting capacity and that one or both parents are acting dangerously — have not been set forth in any petition filed with and served upon Mother. *See State ex rel Dept. of Human Services v. J.R.L.*, 256 Or App 437, 448, 304 P3d 619 (2013) (holding that a juvenile court cannot base its jurisdictional decision on facts not contained in the petition when those facts would not put a reasonable parent on notice). Moreover, these verbal allegations are facially inconsistent with the agency's 5:40 PM text establishing that DHS concluded, in writing, that there was no founded danger from Mother and was arranging to release Al-mira to her care. A single unverified, unassessed, and subsequently recanted statement does not constitute legally sufficient evidence of a current threat, particularly where the agency's own contemporaneous written record establishes that DHS itself had determined no such threat existed from Mother. *See A.W.*, 276 Or App at 278. The recantation eliminates the only predicate the agency possessed. DHS cannot prove Ground A or Ground B on a statement that the child herself has withdrawn. Non-appearance by Mother does not supply that proof. The absence of a contested hearing does not supply that proof. The existence of a warrant in a separate proceeding does not supply that proof. The state bears the burden of establishing current jurisdiction by competent evidence. That burden has not been met.

71. **Framework Three — The warrant from a separate criminal proceeding.** The warrant arises from a separate criminal proceeding that Mother is actively contesting on constitutional grounds. It is not alleged in any dependency petition served on Mother. It is not a finding of parental unfitness. It is not a finding of danger to Al-mira. It has no legal relationship to either the original basis for protective custody or the verbally stated bases for dependency jurisdiction.

72. Oregon law does not permit the state to establish dependency jurisdiction on the basis of an unresolved criminal charge from a separate proceeding, untethered to any allegation of harm to the child. *See Dept. of Human Services v. S.J.M.*, 364 Or 37, 53, 450 P3d 980 (2019) (holding that the state must establish current parental unfitness through constitutionally adequate process, and that proof of prior or collateral conduct, absent a current nexus to the child's welfare, is insufficient); *see*

also A.W., 276 Or App at 278 (the threat must be current and related to the child's welfare).

73. The agency's use of the warrant as an operational barrier to Mother's return of Al-mira also implicates the unconstitutional conditions doctrine. *See Perry v. Sindermann*, 408 US 593, 597, 92 S Ct 2694 (1972) (holding that the government may not condition a benefit on the requirement that a person relinquish a constitutional right, even if the government is not obligated to provide the benefit in the first instance); *Lefkowitz v. Cunningham*, 431 US 801, 805, 97 S Ct 2132 (1977) (holding that the state may not impose penalties that discourage the exercise of constitutional rights). Mother is exercising her constitutional right to contest the warrant in a separate proceeding. The state is using the existence of that warrant to condition her access to her child, her case file, and her participation in these proceedings. The state may not do this.

74. These three frameworks are legally independent. The failure of Framework One does not cure Framework Two, and neither cures the other. The warrant is legally irrelevant to both. The Court should assess each framework on its own terms and find, as the record requires, that none of them is legally sufficient to sustain continued custody of Al-mira away from her mother.

D. Mother's Objection to Referee Jurisdiction Has Never Been Ruled Upon

75. ORS 419A.150 requires a party's written consent to referee adjudication (providing that a party to a proceeding before a referee may object to the referee's authority at the commencement of the proceeding). Mother did not consent. She objected in writing on September 8, 2025. That objection was not docketed and has never been ruled upon. Every order entered by a referee in this proceeding after September 8, 2025 was entered over a timely, unresolved, written objection to referee jurisdiction. The legal consequence is that those orders are voidable at Mother's election. *See* ORS 419A.150 (making consent a predicate for the referee's authority to adjudicate the matter). The objection must be sustained and all further proceedings conducted before a duly elected or appointed circuit court judge.

E. The Agency's Characterization of Mother as Evading Service Is Refuted by the Documentary Record and Is Legally Irrelevant to the Agency's Pre-Removal Failures

76. The agency has suggested to this Court that service has not been accomplished because Mother is evading it. The documentary record forecloses that characterization on six independent grounds.

77. **First: Mother has filed a written appearance at every proceeding.** At each hearing in this matter, Mother has submitted a written filing appearing specially, objecting to jurisdiction, and

setting forth the constitutional defects in this proceeding. A person concealing herself from a court does not file written objections before every hearing. Clerk Beck's September 9, 2025 email confirms Mother's filings were received. The record does not reflect the acts of a person in hiding. It reflects the acts of a person who has appeared through every available means while preserving a jurisdictional objection to compelled in-person appearance.

78. **Second: Mother stated on the record that she wants service.** On December 8, 2025, in a recorded call, Mother stated: I want to accept service. Let's get this clear. I want to accept service." That statement is uncontradicted and unambiguous. It is the opposite of evasion.

79. **Third: The agency has maintained continuous contact with Mother through channels it chose not to use for service.** DHS has communicated with Mother by text message, by telephone call, by email, and by physical notice left at her residence throughout this proceeding. Every channel the agency used for other communications was available for service. The agency chose not to use them.

80. **Fourth: Constitutional due process required the agency to use those available channels.** *Mullane v. Central Hanover Bank & Trust Co.*, 339 US 306, 314, 70 S Ct 652 (1950), holds that due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections," and further that '[w]hen notice is a person's due, process which is a mere gesture is not due process.' " *Id.* at 315. The agency possessed Mother's phone number, email address, and home address from the outset. Under *Mullane*, those known means of communication were constitutionally sufficient for service. The agency's failure to use them is not explained by Mother's unavailability.

81. **Fifth: The record supports the inference that service was deliberately delayed to avoid creating a timestamped record of untimeliness.** ORS 419B.812 required service within thirty days of filing. The first attempt did not occur until October 14, 2025 — thirty-six days after the deadline. Had DHS served Mother by email or mail in September 2025 — using channels it was already using for other communications — that service record would have appeared in the case file at a date establishing, on its face, that service was untimely. The agency's recharacterization of its own service failure as Mother's evasion is contradicted by the sequence: DHS had Mother's email address, used it for substantive communications, and did not use it for service. The inference that this was deliberate is supported by the record.

82. **Sixth: Even if evasion were established, it would not cure the agency's pre-removal failures.** The mandatory pre-removal requirements of OAR 413-015-0415, OAR 413-015-0425, and OAR 413-015-0455 were violated on September 6, 2025 — before any service was attempted, before any shelter hearing was held, and before any question of evasion could have arisen. No subsequent conduct by Mother can retroactively satisfy mandatory pre-removal requirements the agency was obligated to meet in the nineteen minutes between 5:40 PM and 5:59 PM on September 6, 2025. *See Rardin*, 338 Or at 403 (holding that the reasonable efforts requirement is a substantive statutory requirement evaluated on its own terms, not discharged by reference to parental conduct or by subsequent compliance).

F. Al-mira Davis Has Independent Constitutional and Statutory Rights That This Proceeding Has Violated, and Her Interests Are Aligned With Mother's, Not With the State's

83. Al-mira Davis is not a passive subject of this proceeding. She is a rights-bearing person whose own constitutional and statutory interests are directly implicated by the defects described in this motion. This Court is required to consider those interests independently of the positions taken by DHS.

84. Oregon law is unambiguous on this point. In *State ex rel Juv. Dept. v. Cowens*, 143 Or App 68, 74, 922 P2d 1258 (1996), the Court of Appeals held that when the state files a dependency petition seeking to interfere with the parent-child relationship, the state's interests are adverse to the child's interests — not aligned with them. *See also State ex rel Juv. Dept. v. Beasley*, 314 Or 444, 456, 840 P2d 78 (1992) (Fadeley, J., specially concurring) (recognizing that both parent and child have a liberty interest in continuation of their association" under the Oregon and federal constitutions). DHS cannot claim to act in Al-mira's best interest while prosecuting a proceeding that separates her from a parent against whom no allegation of unfitness has been made.

85. The United States Supreme Court has recognized the constitutional dimension of the parent-child relationship as a liberty interest held by both parent and child. *See Troxel v. Granville*, 530 US 57, 65, 120 S Ct 2054 (2000) (recognizing that the interest of parents in the care, custody, and control of their children" is perhaps the oldest of the fundamental liberty interests recognized by this Court"); *see also Santosky v. Kramer*, 455 US 745, 753, 102 S Ct 1388 (1982) (holding that the Due Process Clause protects the fundamental liberty interest of natural parents in the care, custody, and management of their child, and recognizing that this interest is implicated at every stage of state interference with the parent-child relationship, not only at termination). *Wallis v. Spencer*, 202 F3d 1126, 1136 (9th Cir 2000), confirms that [p]arents and children have a well-elaborated constitutional right to live together

without governmental interference."

86. Al-mira is thirteen years old. She has a mother, a brother, and a sister with whom she has an established family relationship. She has expressed, directly to Mother, her desire to return home. She has a father whom she loves and misses. Al-mira's family is not the agency's construction — it is Al-mira's own. The state's interest in child safety does not authorize the systematic erasure of those relationships, particularly in the absence of any allegation that Mother poses a danger to Al-mira.

87. Al-mira's rights in this proceeding have been violated in the following specific respects:

(a) *Right to maintain the parent-child relationship.* Al-mira has been separated from her mother for more than six months. No allegation of unfitness against Mother has been filed in any served petition. No finding of danger from Mother has been made. The continued separation rests on procedurally defective orders entered without Mother's participation. Al-mira's liberty interest in her relationship with her mother is being violated by orders that are themselves void or voidable.

(b) *Right to sibling relationships.* Al-mira has siblings. *See* ORS 418.015(1)(d) (establishing as a policy of the State of Oregon that children should be placed with their siblings whenever possible"). No finding has been made that separation from her siblings is in Al-mira's best interest.

(c) *Right to have her own recantation considered.* Al-mira has stated that the foundational statement attributed to her — the statement that caused protective custody to be exercised — was either recanted or never made. DHS leadership official Sonya Faulkner has acknowledged on a recorded call that the agency possesses evidence of that recantation. A child's own account of the circumstances of her removal is entitled to weight in proceedings that purport to serve her best interest. *See* ORS 419B.090(1)(b) (requiring paramount consideration of the child's best interests in all dependency proceedings).

(d) *Right not to be used as a conduit for the agency's litigation strategy.* Caseworker Milne admitted on the December 8, 2025 recorded call that DHS had communicated to Al-mira that her reunification with Mother was contingent on Mother going to court. Communicating the agency's litigation position to a thirteen-year-old child, and making her aware that her return to her mother is conditioned on her mother's legal compliance, is inconsistent with any legitimate conception of the child's best interest. *See* ORS 419B.090(1)(b); OAR 413-040-0006 (requiring DHS to act in the child's best interest in all child welfare decisions).

(e) *Right to appointed counsel.* ORS 419B.195(3) provides that the court shall appoint counsel for a child when the court finds it in the child's best interest. Given that Al-mira has expressed a desire to return to her mother, that the agency has communicated its litigation position to her, and that DHS's interests are adverse to hers in this proceeding under *Cowens*, appointment of independent counsel for Al-mira is warranted.

88. Al-mira's interests and Mother's interests are aligned. Both seek the restoration of a family relationship severed without statutory authority, without adequate process, and without any founded allegation of harm from Mother. The state's opposition to that restoration is the state's interest. It is not Al-mira's.

89. The Court should also note that if the GAL appointed in this matter has taken a position adverse to Mother's return, that position must be evaluated in light of the record defects documented herein. A GAL's assessment based on a proceeding that was structurally defective from its first moment — in which the foundational basis for removal has been recanted, in which Mother has never been served, and in which the false safety plan statement has never been corrected on the record — is not an assessment made on a complete or accurate record. *See* ORS 419B.090(1)(b) (requiring that the paramount consideration in all dependency proceedings be the child's best interests, not the agency's institutional interests).

G. The Shelter Hearing Violated Mother's and Al-mira's Due Process Rights, and the Agency Has Proceeded With Knowledge That Its Foundational Basis for Removal Was Recanted

90. The Due Process Clause of the Fourteenth Amendment requires that a parent receive notice and a meaningful opportunity to be heard before the state removes a child from parental custody. *Mathews v. Eldridge*, 424 US 319, 335, 96 S Ct 893 (1976) (establishing a three-part balancing test weighing: (1) the private interest affected; (2) the risk of erroneous deprivation and the probable value of additional procedural safeguards; and (3) the government's interest). Applying that test here:

(a) *The private interest* is fundamental. Mother's interest in the care, custody, and control of Al-mira is among the oldest recognized liberty interests under the Constitution. *Troxel*, 530 US at 65. While *Santosky v. Kramer*, 455 US 745, 753, 102 S Ct 1388 (1982), addressed the clear-and-convincing standard at termination of parental rights, its recognition of the fundamental liberty interest applies at every stage of state interference with the parent-child relationship. *Wallis*, 202 F3d at 1136 ([p]arents and children have a well-elaborated constitutional right to live together without governmental interference," applying this principle specifically to removal

proceedings). Al-mira's reciprocal interest in the parent-child relationship is equally protected. *Beasley*, 314 Or at 456.

(b) *The risk of erroneous deprivation is extreme.* The shelter order was entered without Mother's participation. The foundational basis for removal was neither assessed nor verified before it was acted upon. The statement was subsequently recanted. DHS leadership official Sonya Faulkner has acknowledged on a recorded call that the agency possesses evidence the statement was recanted. The shelter order was entered based on that statement, presented through a proceeding in which Mother's written participation was suppressed and a false statement about her refusal of a safety plan was made on the record. *See Mooney v. Holohan*, 294 US 103, 112, 55 S Ct 340 (1935) (holding that due process forbids the state from obtaining a judgment through deliberate deception, whether in criminal or civil proceedings in which the state is a party); *see also Hardwick v. Cty. of Orange*, 844 F3d 1112, 1118 (9th Cir 2017) (holding that the constitutional right to be free from the knowing presentation of false evidence in juvenile dependency proceedings is clearly established).

(c) *The government's interest,* while compelling in genuine emergencies, does not justify proceeding without notice where service has not been accomplished, where the parent attempted to participate through written filing, and where the emergency basis for removal has been recanted.

91. The ten-day rehearing window under ORS 419B.297 — which provides that a party aggrieved by a shelter order may request rehearing within ten days of the order — has never opened as to Mother. A statutory deadline cannot run against a party who was not served and received no notice of the order that triggers it. *Cf. Mullane*, 339 US at 314 (notice that is not reasonably calculated to apprise a party does not constitute due process, and deadlines triggered by such notice are constitutionally infirm). The rehearing window remains open.

92. ORS 419B.150 and ORS 419B.183 require the state to show reasonable cause for continued custody at each review. DHS has never filed, and never served on Mother, a petition alleging that Mother is unfit. The state has not met its burden. *Dept. of Human Services v. S.J.M.*, 364 Or 37, 53, 450 P3d 980 (2019) (holding that the state must establish current parental unfitness through constitutionally adequate process). The separation of Al-mira from her mother now exceeds six months, based on a recanted statement, conducted through procedurally defective proceedings, without any founded allegation of harm from Mother.

H. DHS Failed to Comply With Its Mandatory Pre-Removal Obligations Under ORS 419B.340 and Agency Rules

93. ORS 419B.340(1) requires DHS to make reasonable efforts to prevent removal of a child from the family home and, where removal occurs, to make reasonable efforts to reunify the family. OAR 413-040-0006 implements this requirement. These are mandatory statutory and regulatory prerequisites to the entry of placement and removal orders. *State ex rel DHS v. Rardin*, 338 Or 399, 403, 110 P3d 580 (2005) (holding that the reasonable efforts requirement is a substantive statutory requirement that must be evaluated on its own terms).

94. The agency's own texts establish that none of the mandatory pre-removal steps was completed before 5:59 PM on September 6, 2025. *See* Section III.C above. At 5:40 PM, DHS was arranging to release Al-mira to Mother. At 5:59 PM, DHS reversed based solely on an unverified, unassessed statement. In those nineteen minutes, DHS did not satisfy OAR 413-015-0415 (supervisor consultation), OAR 413-015-0425 (present or impending danger determination), or OAR 413-015-0455 (imminent physical damage finding).

95. Mother's relative Mark was present at the hospital the night of September 6, 2025, prior to protective custody being formally exercised. He was there at Mother's direction as an identified placement resource. DHS did not assess Mark as an alternative to removal before taking custody, as required by OAR 413-015-0420 (requiring consideration of available relatives before removal) and ORS 419B.192 (requiring preference for relative placement). DHS placed Al-mira with Mark the following morning — confirming he was viable and available. The agency had a placement alternative present in the room, declined to assess it, exercised protective custody, and then used that same alternative the next morning. That sequence establishes that removal was not necessary even under the agency's own subsequent conduct. It is an independent ground for finding that the mandatory pre-removal requirements were not satisfied.

96. Milne's December 8 admission — that reunification services would begin only after Mother accepted service and appeared in court — is an admission that DHS has conditioned its statutory reunification obligation on Mother's waiver of her jurisdictional objection. That conditioning is itself a violation of ORS 419B.340(1). The reasonable efforts obligation is the agency's obligation. It is not discharged by following court orders, and it is not contingent on the parent's litigation choices. *See Rardin*, 338 Or at 403.

I. Mother's Written Filings Constitute Lawful Statutory Appearance; the Clerk's Rejection Had No Legal Basis; and the Court's Own Remote Proceedings Infrastructure Was Available and Not Offered

97. Clerk Beck's September 9, 2025 email states: Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements." That statement is wrong as a matter of Oregon statutory law on three independent grounds, and is further contradicted by the presiding judge's own standing order.

98. **First: Written answer is the statutory default under ORS 419B.815.** ORS 419B.815(2) provides that a summons in a dependency proceeding must require one of three responses: personal appearance to attend a hearing (subsection (a)); personal appearance to admit or deny allegations (subsection (b)); or a written answer to the petition within thirty days (subsection (c)). ORS 419B.815(3) provides that if the court does not direct which response type is required, the summons shall require the person being summoned to respond in the manner authorized by subsection (2)(c)" — that is, by written answer. Written answer is not a lesser alternative to personal appearance. It is the statutory default. Mother was never served with a summons directing personal appearance under subsection (2)(a) or (2)(b). She was never served at all. The default response method — written answer — is therefore what Oregon law required of her. She filed one. The clerk rejected it. The rejection had no statutory basis.

99. **Second: ORS 419B.869 expressly equates written response with oral in-court response.** ORS 419B.869(1) provides that each party shall admit or deny the allegations of the petition, and that admissions and denials may be made orally in court or in writing." The statute does not treat oral in-court response as superior to written response. It treats them as equivalent. Beck's email treats written filing as categorically insufficient — a position that directly contradicts the plain text of ORS 419B.869, which authorizes written response as a full and complete method of satisfying the response obligation.

100. **Third: ORS 419B.918 expressly authorizes remote participation — including telephonic and electronic appearance — in any ORS 419B.100 hearing, and defines such participation as a valid form of appearance.** ORS 419B.918(1) provides that on timely written motion showing good cause, a court may permit a person instead of appearing personally, to participate in any hearing related to a petition alleging jurisdiction under ORS 419B.100 … in any manner that complies with the requirements of due process including, but not limited to, telephonic or

other electronic means." ORS 419B.918(4)(d)(C) defines simultaneous electronic transmission" as television, telephone or any other form of electronic communication transmission if the form of transmission allows the court, the attorneys and the party participating remotely to communicate with each other during the proceeding." Remote participation via any two-way communication technology is not a substitute for appearance under Oregon law. It is appearance. It is defined as such in the dependency statute itself.

101. **Fourth: Washington County Presiding Judge Rebecca D. Guptill's Order No. 343, signed February 15, 2024 (Exhibit K), implements ORS 419B.918 and mandated Webex infrastructure for all hearings — infrastructure that existed, was operative, and was not offered to Mother.** Paragraph 3(a) of PJO 343 provides that juvenile proceedings may be held remotely without a motion, upon advance notice with contact information. The order further provides that Webex sessions will continue to be generated for all hearings." A Webex session was generated for the September 8, 2025 shelter hearing. No Webex link was provided to Mother. No advance notice of the hearing was provided to Mother through the communication channels DHS had used throughout the proceeding — channels that included Mother's telephone number, email address, and the text message thread Supervisor Kitto had used the previous day. The court's own infrastructure for remote participation — mandated by PJO 343 and authorized by ORS 419B.918 — existed, was operative, and was not made available to an unserved party who had no notice of the hearing.

102. Clerk Beck's September 9 email does not reference ORS 419B.815. It does not reference ORS 419B.869. It does not reference ORS 419B.918. It does not reference PJO 343. It is a blanket administrative rejection that contradicts four independent sources of law authorizing exactly what Mother did. A case processing clerk has no authority to override Oregon statute or a presiding judge's standing order. The rejection was without legal basis. Mother appeared. Her written filing was valid. The clerk's failure to docket it is the clerk's error, not Mother's failure to appear. The court's characterization of Mother as having failed to appear — and its use of that characterization to perpetuate custody — rests on an unauthorized administrative act that contradicts the plain text of ORS 419B.815(2)(c), (3), ORS 419B.869, and ORS 419B.918, and the presiding judge's own Order No. 343.

J. The Agency's Failure to Produce Records Violates ORS 419A.255, and the Denial of Records While Maintaining Jurisdiction Is an Independent Due Process Violation

103. ORS 419A.255 requires DHS to maintain case records and make them available to parents upon request. The statute does not condition records access on the parent's court appearance, the parent's

waiver of jurisdictional objections, or judicial approval. Milne's statement — I believe that all these records would have been given to you had you appeared in court" — is a direct contradiction of the statute's plain terms.

104. Confirmation ID #36508, submitted December 22, 2025, reflects a documented, confirmed records request that has remained unanswered for more than three months. That is an independent statutory violation.

105. The denial of records access while maintaining jurisdiction is also an independent due process violation. Under *Mathews v. Eldridge*, 424 US at 335, the risk of erroneous deprivation is at its highest when the party whose liberty interest is at stake cannot see the record on which the state relies. Mother cannot contest what she cannot see. *See In re Gault*, 387 US 1, 33, 87 S Ct 1428 (1967) (holding that due process requires that a party in a proceeding affecting fundamental liberty interests be given access to the record and an adequate opportunity to prepare a response). ORS 419B.875 and ORS 419B.443 independently entitle Mother to case records. The denial of those records, while the state simultaneously maintains custody of her child, is a structural due process violation that compounds every other defect in this proceeding.

K. The Referee's Denial of Records Access Was Ultra Vires and Unconstitutional

106. The referee interposed herself into the clerk's ministerial function of producing case records and denied Mother access to the case file to which ORS 419A.255 entitles her as a party. A referee's authority under ORS 419A.200 *et seq.* is adjudicative — it does not extend to supervising or overriding the clerk's ministerial duty to produce records. *See* ORS 419A.255 (imposing the records-production obligation directly on DHS and the clerk, without reference to judicial approval). That interposition was an act without legal authority. It was ultra vires, and the denial is void.

107. The condition imposed — that Mother appear physically at the courthouse — is not found in ORS 419A.255 or any other statute. It is also not a neutral condition: it exposes Mother to execution of a warrant in a related criminal proceeding she is exercising her constitutional right to contest. Conditioning a statutory right on submission to potential arrest in a separate proceeding is constitutionally impermissible. *See Perry v. Sindermann*, 408 US 593, 597 (1972) (holding that the government may not condition a benefit on the requirement that a person relinquish a constitutional right).

K-2. The Proceeding Has Perpetuated Itself by Bootstrapping: Treating Lawful Written Participation as Non-Appearance to Avoid the Evidentiary Confrontation That Would Expose the Absence of Proof

108. The six independent failures documented in this motion do not operate in isolation. They converge in a single structural dynamic: the court has perpetuated jurisdiction by treating Mother's lawful written participation as non-appearance, thereby avoiding the evidentiary confrontation that would expose DHS's inability to prove either petition ground.

109. The mechanism is as follows. Mother filed a written appearance on September 8, 2025, before the shelter hearing concluded. That filing was rejected by a clerk without statutory authority. The court then constructed a non-appearance narrative on the basis of that unauthorized administrative act. That narrative — that Mother failed to appear — has been used to justify every subsequent order, every denial of services, every denial of records access, and every refusal to adjudicate the jurisdictional question. But the narrative is false. Mother appeared. Her appearance was suppressed.

110. The consequence of that suppression is that the evidentiary confrontation required by ORS 419B.100 has never occurred. DHS has never been required to present, in an adversarial proceeding in which Mother participated, evidence sufficient to establish a current threat of serious loss or injury likely to be realized. *See A.W.*, 276 Or App at 278. The recantation eliminates the only predicate the agency possessed. Non-appearance does not supply proof of Ground A or Ground B. The absence of a contested hearing does not supply that proof. The warrant does not supply that proof. What the state has done is use the suppression of Mother's participation to avoid the moment at which it would be required to prove what it has never proven: that Al-mira faces a current threat from her mother.

111. This is not a procedural complaint. It is a jurisdictional one. A court cannot perpetuate jurisdiction by preventing the party against whom jurisdiction is asserted from appearing to contest it, and then treating that party's absence — caused by the court's own suppression of her participation — as evidence of the need for continued jurisdiction. That is a jurisdictional shell game. It is constitutionally impermissible. *See Mathews v. Eldridge*, 424 US at 335 (due process requires a meaningful opportunity to be heard; a procedure that makes participation contingent on submission to adverse consequences in a separate matter does not satisfy that requirement); *Mooney v. Holohan*, 294 US at 112 (due process forbids the state from obtaining a judgment through deliberate deception or suppression of participation).

L. The In-Person Condition Applied Across This Proceeding Constitutes an Unconstitutional Condition That Has Systematically Excluded Mother From Her Own Case

112. Throughout this proceeding, a single operational condition has been applied to every avenue of Mother's participation: she must appear in person at the Washington County courthouse. That condition has been applied to filing documents, to accessing case records, to attending hearings, and to receiving reunification services. Each application is independently unconstitutional. The cumulative pattern is a structural due process violation. *See Mathews v. Eldridge*, 424 US at 335 (due process requires a meaningful opportunity to be heard; a procedure that makes participation contingent on submission to adverse consequences in a separate matter does not satisfy that requirement).

113. The individual applications of this condition are each independently impermissible:

(a) *Filing documents.* ORS 419B.812 and ORS 419B.815 provide no authority to condition written filing by an unserved party on in-person appearance. Clerk Beck's September 9, 2025 email has no statutory foundation. ORS 419B.815(2)(c) and (3) make written answer the statutory default. ORS 419B.869 equates written and oral response. ORS 419B.918 and PJO 343 authorize and mandate remote participation infrastructure. The clerk's rejection contradicts all of them.

(b) *Accessing case records.* ORS 419A.255 imposes the records-production obligation without condition of in-person appearance or judicial approval. The referee's imposition of that condition was ultra vires, as set forth in Section IV.K above.

(c) *Receiving reunification services.* ORS 419B.340(1) imposes on DHS a mandatory obligation to make reasonable efforts to reunify the family. Milne's conditioning of reunification services on Mother's court appearance converts a mandatory obligation into a contingent benefit conditioned on waiver of a constitutional right. *See Perry v. Sindermann*, 408 US at 597.

(d) *Hearing participation.* ORS 419B.918 authorizes remote participation in any ORS 419B.100 hearing. PJO 343 mandates Webex sessions for all hearings. *See* Exhibit K. No Webex link was provided to Mother. No advance notice of the September 8 hearing was provided through any channel. The court's rejection of Mother's written participation, while simultaneously failing to serve her with a summons and failing to provide remote access mandated by the presiding judge's own order, deprived her of every lawful avenue to participate.

V. RELIEF REQUESTED

Mother respectfully requests that this Court enter an order:

1. Striking the September 8, 2025 shelter order and all subsequent placement and removal orders entered in this proceeding;

2. Sustaining Mother's written objection to referee jurisdiction under ORS 419A.150, filed September 8, 2025, and ordering that all further proceedings be heard before a duly elected or appointed circuit court judge;

3. Finding, pursuant to ORS 419B.803(1)(a) and ORS 109.717, that no order entered in this proceeding is enforceable against Mother, on the grounds that Mother has not been served in accordance with ORS 419B.812 to 419B.839 and has not submitted to jurisdiction;

4. Setting the jurisdictional enforceability question for hearing on a priority basis pursuant to ORS 109.721, before any further proceedings on the merits. Hearing to be set for: _____;

5. Finding that DHS failed to comply with the mandatory pre-removal requirements of OAR 413-015-0415 (supervisor consultation), OAR 413-015-0425 (present or impending danger determination), and OAR 413-015-0455 (imminent physical damage finding) prior to exercising protective custody on September 6, 2025;

6. Finding that DHS failed to make reasonable efforts to prevent removal and to assess available relative placement resources as required by ORS 419B.340, ORS 419B.192, OAR 413-040-0006, and 42 U.S.C. § 671(a)(15);

7. Finding that the summons was not served within the thirty-day deadline imposed by ORS 419B.812;

8. Finding that the shelter order was entered on the basis of a materially false statement of fact — that Mother had refused a safety plan that was never offered — and vacating that order on that independent ground;

9. Finding that the ten-day rehearing window under ORS 419B.297 has not run as to Mother, because Mother was never served and never received notice of the shelter order;

10. Finding that the referee's denial of Mother's access to case records and the imposition of an in-person appearance condition not found in ORS 419A.255 was ultra vires, unconstitutional, and void; and ordering the clerk to produce copies of the complete case file to Mother within five (5) days of the date of this Order, without condition of in-person appearance;

11. Ordering DHS to produce all records responsive to Confirmation ID #36508 within seven (7) days, including all parental capacity assessments, reasonable-efforts documentation, service records, safety plan records, and records of all agency communications regarding Mother from September 6, 2025 to the present;

12. Finding that the systematic application of an in-person appearance condition to Mother's filing rights, records access, hearing participation, and reunification services constitutes an unconstitutional condition in violation of the Fourteenth Amendment and *Perry v. Sindermann*, 408 US 593 (1972);

13. Ordering DHS to state in writing, within seven (7) days, the specific current allegations of dependency jurisdiction against Mother, consistent with any petition on file, or to state in writing that no such allegations exist;

14. Ordering DHS to comply immediately with its statutory duties under ORS 419B.340, ORS 419B.192, and 42 U.S.C. § 671(a)(15);

15. Ordering the immediate appointment of counsel for Mother under ORS 419B.195(1);

16. Ordering the appointment of independent counsel for Al-mira Davis under ORS 419B.195(3), on the grounds that Al-mira's expressed preferences and independent interests require representation separate from and independent of DHS;

17. Ordering the immediate return of Al-mira Davis to Mother's care; and

18. Granting such other and further relief as this Court deems just and proper.

CERTIFICATE OF CONFERRAL

(UTCR 5.010)

Mother certifies that she has made a good-faith effort to confer with the opposing party regarding the relief requested in this motion. Mother communicated with caseworker David Milne on December 8, 2025 and December 25, 2025, on recorded calls, regarding the service defect, the records request, the false safety plan statement, and the agency's failure to make reasonable efforts. The agency has not cured any of the defects identified herein. Conferral with counsel of record for DHS has not been possible because no attorney has identified themselves to Mother as authorized to appear on behalf of DHS in direct communications with her.

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON — JUVENILE DEPARTMENT

Case No.: **25JU04261**

In the Matter of AL-MIRA DAVIS
DOB: June 23, 2011
A Child. Filed By: AshLe' Penn, Mother,

Appearing by Special Appearance, *In Propria Persona*

MOTHER'S DECLARATION IN SUPPORT OF POST-HEARING OMNIBUS MOTION

I, AshLe' Penn, declare under penalty of perjury under the laws of the State of Oregon as follows. *See* ORS 194.800 (authorizing unsworn declarations under penalty of perjury in Oregon proceedings in lieu of a notarized affidavit):

1. I am the Mother of Al-mira Davis, born June 23, 2011, and a party to the above-captioned proceeding. I make this declaration based on my personal knowledge.

2. I hold a Certification in Suicide Prevention — Diagnosis and Treatment. This certification specifically trained me in identifying and responding to suicidal ideation in youth, including situational triggers, risk factors, and protective factors. DHS did not assess my capacity to respond to Al-mira's reported statement before reversing its decision to release her to my care.

3. On September 6, 2025, at 5:40 PM, I received a text message from telephone number (503) 757-3830, identified as DHS Supervisor Heather Kitto, stating that DHS workers had been trying to reach me so that we can release custody to you." A true and correct copy is attached hereto as Exhibit A.

4. At 5:59 PM on the same date, I received a second text message from the same number reversing that position, based on a reported statement by Al-mira about suicidal intent if returned to my care. Al-mira subsequently retracted and denied that statement directly to me in a phone call. DHS terminated that call while Al-mira was in the process of making that denial.

5. In the nineteen minutes between the 5:40 PM and 5:59 PM texts, no DHS worker contacted me to conduct a parental capacity assessment, offer a safety plan, or consult me regarding any alternative to removal.

6. I spoke with DHS central office leadership official Sonya Faulkner, who acknowledged on a recorded call that the agency has evidence that the statement attributed to Al-mira — the statement that caused protective custody to be taken — was recanted. Faulkner stated at transcript time 19:18: once

there was a recantation for that to be considered," and at transcript time 20:08: even given the recantation." Al-mira has told me directly that she never made that statement. A true and correct copy of the Faulkner call recording and transcript is attached hereto as Exhibit J.

7. My relative Mark was present at the hospital on the evening of September 6, 2025. He was there at my direction as a person who could be a placement resource. DHS did not assess Mark as an alternative to removal before taking custody. DHS placed Al-mira with Mark the following morning.

8. I was not notified of the September 8, 2025 shelter hearing. I prepared a written filing on September 8, 2025, and submitted it to the clerk of court at 1:44 PM. The clerk received it. The clerk did not docket it. On September 9, 2025, I received an email from Clerk Beck stating that my filing was rejected because my personal appearance was required. A true and correct copy of that email is attached hereto as Exhibit F.

9. As of the date of this declaration, I have not been served with a summons or petition in this proceeding in compliance with ORS 419B.812 to 419B.839. The first time anyone from DHS mentioned service to me was in connection with an attempt on October 14, 2025 — thirty-six days after the statutory deadline.

10. On December 8, 2025, in a recorded call with caseworker David Milne, I stated: I want to accept service. Let's get this clear. I want to accept service." I have never evaded service.

11. The allegations I have been told verbally — that one or both parents lack parenting capacity and that one or both parents are acting dangerously — have not been presented to me in any filed petition. These verbal allegations are inconsistent with the agency's 5:40 PM text of September 6, 2025, which established that as of that moment, DHS had determined there was no danger from me sufficient to withhold custody.

12. I submitted a records request on December 22, 2025, which was assigned Confirmation ID #36508. As of the date of this declaration, that request has not been answered.

13. I was informed that I could obtain my case file by appearing in person at the courthouse. I have an active arrest warrant in a related criminal proceeding that I am contesting on constitutional grounds. Physical appearance at the Washington County courthouse exposes me to arrest on that warrant in that separate proceeding.

14. As of the date of this declaration, DHS has provided me with no services, no visitation schedule, and no reunification plan. No parental capacity assessment has been conducted. No referrals have been made.

15. I declare under penalty of perjury that the foregoing is true and correct.

Executed on: _____, 2026.

_____

AshLe' Penn

Mother, Appearing *In Propria Persona* (Dependency)

Special Appearance Only

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF WASHINGTON — JUVENILE DEPARTMENT

Case No.: **25JU04261**

In the Matter of AL-MIRA DAVIS
DOB: June 23, 2011
A Child. Executed By: AshLe' Penn, Mother

AFFIDAVIT OF NON-SERVICE
(Exhibit B)

STATE OF OREGON

County of _____ I, AshLe' Penn, being first duly sworn, depose and state as follows:

1. I am the Mother of Al-mira Davis, born June 23, 2011, and a party to the above-captioned proceeding, Case No. 25JU04261. I make this affidavit based on my personal knowledge.

2. As of the date of this affidavit, I have not been served with a summons or a true copy of the petition in case 25JU04261, in compliance with ORS 419B.812 through ORS 419B.839. ORS 419B.815(1) requires that a summons be served together with a copy of the petition. Neither document has been served upon me in a manner that satisfies the statutory requirements.

3. The first time any person from DHS or the court referenced service of the summons and petition to me was in connection with an attempted service on October 14, 2025 — thirty-six days after the thirty-day statutory deadline for service imposed by ORS 419B.812, measured from the date the petition was filed in connection with the September 8, 2025 shelter hearing.

4. On December 8, 2025, in a recorded telephone call, DHS caseworker David Milne acknowledged that service had not been accomplished, stating: we've been unable to serve your mom papers." Caseworker Milne then asked me to schedule a time for him to come to my location to serve me. A true and correct copy of this transcript is attached hereto as Exhibit C.

5. On December 25, 2025, in a second recorded telephone call, Caseworker Milne again confirmed that service had not been completed, stating: Is there a date, time next week where we can meet and I can serve you with the papers that the court is requiring to be received?" A true and correct copy of this transcript is attached hereto as Exhibit D.

6. On December 8, 2025, I stated to Caseworker Milne: I want to accept service. Let's get this clear. I want to accept service." I have not evaded service. I have stated on the record, in a recorded call, my willingness to accept service.

7. Caseworker Milne's account of his service attempts has been limited to leaving a business card at my door with a handwritten note asking me to contact him. That is not service of process under any method authorized by ORS 419B.825, which specifies the authorized methods of service in juvenile dependency proceedings, including personal delivery and, under specified conditions, substitute service.

8. DHS has maintained regular communication with me throughout this proceeding by text message, telephone call, email, and physical notice left at my residence. Those channels — including my telephone number, email address, and home address, all of which DHS possesses — were available for service at all times. DHS did not use them for service. *See Mullane v. Central Hanover Bank & Trust Co.*, 339 US 306, 314, 70 S Ct 652 (1950) (holding that due process requires notice reasonably calculated, under all the circumstances, to apprise interested parties" of pending proceedings, and that where the means to reach a party are known, those means must be used).

9. I have appeared at every proceeding in this matter through written filings submitted to the clerk of court, in which I have appeared specially, objected to jurisdiction, and set forth the grounds for my objection. I have not concealed myself from the court or from the agency.

10. This affidavit is submitted in support of Mother's Post-Hearing Omnibus Motion, filed contemporaneously herewith, and is incorporated herein by reference as Exhibit B.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct. Executed on: _____, 2026.

_____

AshLe' Penn

Mother, Appearing *In Propria Persona* (Dependency) **SUBSCRIBED AND SWORN** to before me this

_____ day of _____, 2026. _____

Notary Public for Oregon

My Commission Expires: _____

EXHIBIT LIST

Exhibit	Description
A	DHS Supervisor Heather Kitto text messages, September 6–7, 2025: (1) 5:40 PM — so that we can release custody to you"; (2) 5:59 PM — reversal based on unverified statement; (3) 7:02 PM — email confirmation; (4) Sunday 10:05 AM — Mark placement, summons delivery promise.
B	Affidavit of Non-Service, executed by AshLe' Penn, attesting that no summons or petition in case 25JU04261 has been lawfully served upon her as of the date of execution, pursuant to ORS 419B.812 and ORS 419B.815.
C	Transcript of recorded call between AshLe' Penn and DHS caseworker David Milne, December 8, 2025, including Milne's admission of non-service and conditioning of reunification services on court appearance.
D	Transcript of recorded call between AshLe' Penn and DHS caseworker David Milne, December 25, 2025, including Milne's second admission of non-service and statement that agency acted in accordance to the directions of the court."
E	Transcript of recorded call between AshLe' Penn and attorney Ireland Mahoney, September 15, 2025, including Mahoney's acknowledgment that she was not authorized to appear at the September 8 shelter hearing.
F	Email from Juvenile Case Processing Clerk Kimberly Beck to AshLe' Penn, September 9, 2025, returning Mother's written filing and stating that personal appearance was required.
G	Transcript of recorded call between AshLe' Penn and Trial Court Administrator Richard Moellmer, including Moellmer's failure to identify any authority for the referee's denial of records access.
H	Records request Confirmation ID #36508, submitted December 22, 2025, with confirmation of receipt and documentation of non-response as of the date of this filing.
I	Mother's September 8, 2025 written filing: Objection to Referee Jurisdiction, Motion to Participate by Written Filing, Objection to Continued Custody, and Demand for Immediate Placement with Natural Mother.
J	Recording and transcript of call between AshLe' Penn and DHS central office leadership official Sonya Faulkner, including Faulkner's acknowledgment at transcript time 19:18 (once there was a recantation for that to be considered") and transcript time 20:08 (even given the recantation") that the agency possesses evidence that the statement attributed to Al-mira — the foundational basis for protective custody — was recanted.
K	Washington County Presiding Judge Rebecca D. Guptill's Order No. 343 on Remote Proceedings, signed February 15, 2024, providing that juvenile proceedings may be held remotely without a motion upon advance notice, that Webex sessions will be generated for all hearings, and that shelter hearings are hybrid proceedings with remote access available.

EXHIBIT A

DHS Supervisor Kitto Text Messages, September 6–7, 2025

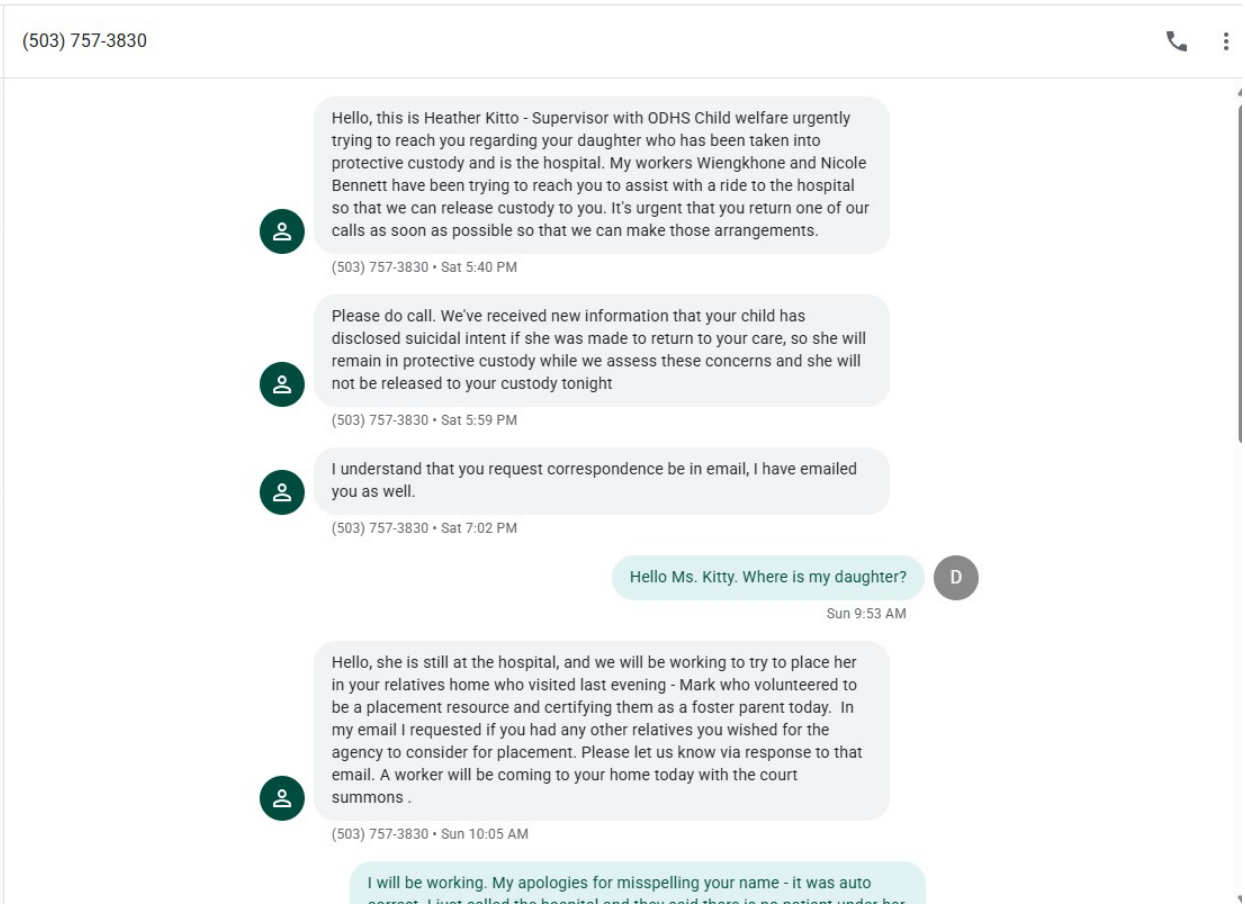


EXHIBIT B

Affidavit of Non-Service

[Scan of executed Affidavit to be inserted here.
Replace this placeholder with:
`\includepdf[pages=-,pagecommand={}]{ExhibitB-AffidavitNonService.pdf}`
once the signed affidavit is scanned and saved as a PDF.]

EXHIBIT C

Transcript: AshLe' Penn and David Milne, December 8, 2025

David Milne
00:00
This call is now being recorded.

AshLe' Penn
00:02
Hello?

David Milne
00:04
Yes AshLe, it's Dave here from ODHS. I'm just calling you back.

AshLe' Penn
00:08
Oh, thank you for returning my call, Mr. Milne. I had a question, a few questions for you related to some of the meetings that you have had with my daughter. And they relate to the basis that you've given her for, you know, as a justification as to why she's not able to be around me or my home. It's come to my knowledge that you have told my daughter that you need to ensure that there's not a meth lab at my house. Is this true?

David Milne
00:55
No, I've never mentioned anything about a meth lab at your house or the word meth lab has never entered a Conversation with me and Almira

AshLe' Penn
01:03
okay, About substance use whatsoever. Because I understand that. Well, actually, rather. I'd rather say this, I don't quite understand because I am lacking that petition. I don't know what my allegations of harm are. And that is a serious defect in you all's case that I will be taking action on probably earlier next week. I've been working on my filings, but it's also come to my knowledge that Amira has had some recent medical appointments that I wasn't aware of. I'm simply not being informed under the guise that I'm not cooperative or I'm. Well, those are the words that I'm not cooperative. Now, you have discussed with her my, from your perspective, lack of cooperation, correct?

David Milne
02:13

David Milne
03:23
Not lack of cooperation. What I said was that in order for us to work with you, the expectation is that you go to court. And once we do that, then we can start working with you. I just explained the process is that if the mom accepts the papers and we said we're going to the papers, then they go to court and then we can start working with you with regards to reunification. So just explain the process and understand it. And you know, the judge commented it because that's what Almira was asking, but she wanted to hear or she wanted to have documentation about what happened at the last court here. And I said that it's all on tape. You can ask your attorney to get a transcript of the case. And that's what Judge Rooney commented. One was with the juvenile Court is an expectation that the parent appears at the shelter hearing.

AshLe' Penn
03:37
So, Mr. Milne, were you at the shelter hearing?

David Milne
03:40
And I just said that, you know, we've got to serve mum papers, but, you know, at this time we've been unable to serve your mom papers.

AshLe' Penn
03:48
Okay. Have you. Were you at the shelter hearing. Mr. Milne?

David Milne
03:51
Sorry?

AshLe' Penn
03:52
Were you at the shelter hearing?

David Milne
03:55
I was, yeah.

AshLe' Penn
03:56
Okay. So related to that, you've not been unable to serve me paperwork. You haven't tried. And secondly…

David Milne
04:04
I've left mine. I've been at your door, and I've left my card asking you to please call me. I've written please call me on the back of my business card. Nobody is answering the door..

AshLe' Penn
04:18
No. No. So here's the thing, and we've talked about this. I don't really want to spend time rehashing what is true and how the law works. Even from a layperson's perspective. I'm not required to accept every invitation at my front door unexpected. I don't even know if you're home. I did not receive a card at my front door. I am in communication with you, and yet you explain that process to my daughter. As far as being expected in court, accepting your paperwork, it seems to me like DHS wants me to do its job while it is not doing its job lawfully. So this is not the way the process works. The process works like this. I'm being very careful not to. I'm being very careful not to interrupt you.

AshLe' Penn
05:11
I'm being very careful not to interrupt you because I would rather have a productive

conversation. I've been very careful. So please respect that. And so the way that this process works is that in order for. Excuse me. In order for the Juvenile Dependency Court to take jurisdiction, even temporarily, over a child, that they may only do so. And the word only is not used very often in Oregon Revised Statutes, but it is for this. And so what I believe happened because you were there at the shelter hearing, is that miss Ireland. Mahoney. I believe that miss Mahoney entered an appearance for me where I did not authorize her to do that. And that's something that I'll have to untangle myself. But that is the only way that the Juvenile Dependency Court could possibly maintain this case as it is, with an attorney who has misrepresented their authority to appear on my behalf, whom does not represent me and would totally be violating the law by entering an appearance on my behalf. And is that what happened?

David Milne
06:32
That's. That's between you and your attorney? I would just like to ask.

AshLe' Penn
06:35
Absolutely.

David Milne
06:39
You said you wouldn't interrupt me. So is there a date, time next week where we can meet and I can serve you with the papers that the court is requiring to be received?

AshLe' Penn
06:51
Yes, there is. Yes, there is. Let's set that time up. Because when that time happens, Mr. Milne, prior to that time occurring, DHS, you, as the current caseworker, operating within your ethical and legal framework, you'll be required before that day to make note on record of the perjury that took place at the shelter hearing, of DHS's failure to offer services and DHS's failure to acknowledge that a family member whom was present prior to protective custody being taken was present and could mitigate the removal. But DHS did not measure parental capacity. We've gone through this. I'm not going to make this. I'm not going to help you cure your defects. I'm. I want to accept service. Let's get this clear. I want to accept service.

AshLe' Penn
07:48
But until you honor your process and until you act lawfully, because the things that I'm saying, they're not just bothersome, they're not annoying, they're unlawful. You've removed a child under the premise that you've prevented the removal, that there was such an immediate harm, that the removal was absolutely imminent and necessary, that there's nothing that could have possibly prevented it. You didn't measure my parental capacity. These are things that are integral to your job. You don't just get to forget them, move on, act like you didn't forget them, and put that weight on the parent, because they're there for a reason. Can you help me understand why these steps are just so inconsequential to you when that is, when that's in Oregon's plan?

David Milne
08:45
You're not letting me answer it.

AshLe' Penn

08:47
Well, I will, but Oregon has given assurances to the federal government and the state plan, and those assurances have not taken place. And why.

David Milne
08:56
So from what I can understand, when being at the shelter hearing, the judge explained that they would accept the motion that you sent. However, it was misinformed. And the judge commented on record that it is an expectation of that court for parents to appear before them. And I believe that when you're saying that everything that DHS has done isn't legal.

AshLe' Penn
09:22
No, no. That doesn't address anything that I said. And that's the second hearing. No, hold on. I won't let you obfuscate. Mr. Milne, I. Answer the question. That was at the review hearing. That's not the shelter hearing. That was not the shelter hearing. That was the second hearing. I'm talking about. At the shelter hearing. We're talking about, prior to removal, your skipping steps, and I don't want to do that. You're. What that's called is called obfuscation. You're not answering the question and then telling me not to interrupt you. Please answer my question.

David Milne
09:52
I believe the agency has acted in accordance to the directions of the court.

AshLe' Penn
09:58
No, no, no, no. Stop, stop, stop. Stop. stop. Mr. Milne, before we go to court, this is on September 6th. The shelter hearing was on September 8th. Let's forget about the court for a moment, because that's what you guys are relying on and hiding behind. Let's move forward. No, no. Wait a minute. Hold on a second. This is important, and we really do need to have this out, so just don't get. You need to stop.

David Milne
10:26
I think that's what you want to. You want to…

AshLe' Penn
10:28
For that shelter hearing.

David Milne
10:30
What my job is. I called you.

AshLe' Penn
10:32
But it is your job. But it is. And I'm only talking about your job. I'm not talking about the court. I'm talking about preventing the removal. Before this.

David Milne
10:40

Okay. The removal already happened.

David Milne
10:42
Oh, really? Absolutely! Is that how DHS comports itself? It does what it wants, does not prevent the removal, does not offer services, refuses to acknowledge that family is present, and then you say, oh, well, we broke the law. So what?

David Milne
10:58
I never said we broke the law. I said, I believe.

AshLe' Penn
11:00
But, you know, because you won't address it. Mr. Milne, you are going to the court. You're hiding behind the court.

David Milne
11:06
We're talking about prior to that.

I’m not hiding behind anything.

AshLe' Penn
11:09
You are, because the question is very clear. And if you're a caseworker for DHS in Oregon, then I know you know what I'm talking about. You have a responsibility to prevent the removal. You have a responsibility to measure parental capacity. You have a responsibility to acknowledge family that is present. You have an. You have a responsibility to offer services. You have a responsibility not to perjure yourself in front of court at the removal hearing, but you want to skip past all of that and go to the review hearing.

David Milne
11:35
The removal has already happened.

AshLe' Penn
11:39
Yes, it has. And we're talking about prior to that. Mr. Milne, prior to the removal taking place, are you really. Are you really going to sit here on this phone right now and tell me so what? The removal happened and it happened the way I'm saying it happened, because that's how it happened. But so what? That's what you're saying because the court accepted your testimony.

David Milne
12:07
I, I, I, that's your word.

AshLe' Penn
12:11
It's not my word. You guys told the court that I refused a safety plan that wa snever

offered to me.

David Milne
12:16
Was there anything I can help you? Is there anything I can help you moving forward?

AshLe' Penn
12:21
Absolutely. Absolutely, there is. We can talk about. Absolutely there is. We can talk about the records that you're going to send me, Mr. Milne? The records that reflect what services were offered to prevent the removal. You. And you can send that to me digitally. You can send me. Yeah, absolutely. I'd like some documents from you. I'd like to see whatever assessments that were conducted on me as a parent to measure my parental capacity. I'd like to see the record of DHS attempting to keep my family intact prior to the removal because it seems to me like. And thank you for acknowledging it, you recognize that your agency removed a child without doing what it's supposed to do first and then you hide behind the court

You’re contradicting yourself.

I’m contradicting myself. How?

David Milne
13:20
Because you've said on several times that there was a nine minute period when DHS was.

AshLe' Penn
13:27
I didn't say that. It was a 19 minute period. It was 19 minutes between 5:40 and 5:59.

David Milne
13:34
They were discussing returning.

AshLe' Penn
13:38
No, they. What they expected hospital. I know what I said because I live it. And that's my daughter and I actually love her and I actually do want her and have the best intentions for her. So at 5:40 when I received a message that says, hey, Ms. Penn, where are you? We're looking for you. We need you here to retrieve your daughter. I said, listen, I don't have transportation. I'm not able to be. I'm sending my family, who is a mitigating factor, despite the fact that you didn't measure my parental capacity or offer services or the fact that Amira denies making that statement in front of dhs. And with my uncle's present. Despite all of that, now we have a family member who was present prior to removal mitigating the removal and DHS doesn't even acknowledge that.

So we are talking about your job and acting unlawfully because you're telling me that DHS did everything it was supposed to do. Did it? Well, I would like to see those records. Mr. Milne, you asked me a very specific question. I would like to see those records. What services were offered? A safety plan that wasn't offered to me until October 1st. Is that what you're saying?

David Milne
14:42
No, I believe that all these records would have been given to you had you appeared in court.

Bull snap

It's called the disposition.

AshLe' Penn
14:50
Bull snap. You know why? You know why? Because DHS failed to serve me. It's not my job to serve myself. I have to serve myself now.

David Milne
15:01
No, no you don't.

AshLe' Penn
15:03
No, I don't. But I have several communications between myself and Ashley Crafton and Heather Kiddo and yourself, prior to the first time you tried to serve me, which was on October 14th or November 14th. It was. I was some months later the first time anyone ever mentioned a service to me. The first time was months after her removal. Mr. Milne, are you really going to act this obtuse? Are we really going to be this obtuse and indifferent to the process? That's what this is. This is a willful indifference to your process.

David Milne
15:38
That's your interpretation of what happened.

AshLe' Penn
15:40
And, no, you're directly ignoring what I'm saying to you. That is factual on the record. That is not me interpreting anything. I'm begging you to stop obfuscating and to acknowledge, or at least. At least just acknowledge. Take a position. But you're not even doing that, which is actually unlawful in itself because you're an administrative agency. You have to take a position. You can't just ignore what I'm saying. And I'm saying to you that prior to the court making the statement, that I'm expected to be there without having any compulsion, but through service of summons, because that's what the summons says, the summon says, be in court on this day without that taking place and not even being offered to me until months after her removal.

AshLe' Penn
16:28
You'd have to help me understand how you're not acknowledging that DHS didn't do nearly any of what it is required to do prior to removing a child from their family. And you want to talk about court. I'm talking about on September 6th, 7th, and the morning of the 8th. And yes, the court. You should also know this. It's nfot your. This is not your wheelhouse. But that court clerk and that judge saying that my ORCP motion doesn't apply to juvenile dependency. That's probably because I have record of filing a motion prior to

that the court clerk took and threw in the trash and did not mention orcp. It only mentioned ors for 419B. They couldn't have that one make it through because that one was jurisdictional and they took my filing and they threw it away. That's, again, not your wheelhouse.

AshLe' Penn
17:32
But I have appeared more than once through how. In. In a way that Oregon recognizes appearance, and that is through a written filing. And I was told I could not, and I still sent it. I have record of it. But, Mr. Milne, none of that is the reason why I'm talking to you as the caseworker. I'm talking to you as the caseworker because I would like to see the records prior to the removal of what DHS did. You know, reasonable efforts, that whole thing you guys are getting paid for. Amira and you're only getting paid for her because you claimed to have exhausted reasonable efforts to prevent that removal. Which means you're stealing.

David Milne
18:20
Yeah, I don't think the judge would have signed the order.

AshLe' Penn
18:24
Who cares about the judge. You guys lied. You lied to her without a party present. Of course she's going to believe what you said because you lied. That doesn't matter. Stop talking about the court. And you have a responsibility prior to going to court, Mr. Milne, and that's important. And you want me to accept the service? To jump into court when you guys have fast forwarded past what you're supposed to do. So let's talk about prior to going to court.

David Milne
18:53
No, because. Because it's. You're talking about the past and I.

AshLe' Penn
18:57
I'm talking about the past. Mr. Milne, thank you for your time. I needed this call. I needed this call in my records. Thank you so much. Appreciate it. Have a good day.

David Milne
19:06
You, too.
Sync with audio

Leverage digital tools to strengthen relationships and develop connections with and between students and families.

Evaluate digital materials to ensure they do not perpetuate stereotypes or fail to represent certain identity groups. Choose materials that reflect a diversity of contributions to society, including preferencing the impacts and contributions of marginalized communities.

EXHIBIT D

Transcript: AshLe' Penn and David Milne, December 25, 2025

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EXHIBIT E

Transcript: AshLe' Penn and Attorney Ireland Mahoney, September 15, 2025

[00:00:00 --> 00:00:01][SPEAKER_00]
This call is now being recorded.

[00:00:06 --> 00:00:08][IM]
Is Ashley Penn there?

[00:00:08 --> 00:00:10][AP]
Hi. This is Ashley.

[00:00:13 --> 00:00:33][IM]
Hello. I just got your voicemail, and I would be happy to talk with you more about your case. But first, because I haven't been formally appointed, I haven't really dug in as deeply as I should before we have a full conversation.

[00:00:35 --> 00:00:36][AP]
Okay, I understand..

[00:00:36 --> 00:00:46][IM]
So it would be really important for you to fill out that court-appointed paperwork first, and I could have the DHS worker send you that. I can email them and ask them to send that to you.

[00:00:47 --> 00:01:13][AP]
I have access to that form. It's, you know, very easily accessible. I can get to that. I have questions before I do. Okay. And, yeah, I would be happy to speak with you, even though I know that you – haven't been formally appointed. I think that the intention to appoint you has already attached.

[00:01:15 --> 00:01:35][SPEAKER_01]
So, actually, so I'm not able – I'm not – because I work at a public defender's office, I can only work on cases that I've been formally appointed to. There are very strict rules about that at my office. So I'm not allowed to send a lot of time on cases where I haven't been formally appointed yet.

[00:01:36 --> 00:04:06][AP]
I understand that that might be a case management perspective that you all take. I know there's a shortage of attorneys in Oregon. However, I think that the – That's exactly it, yeah. But I think that the Oregon State Bar has published an opinion that – not only this, but has published an opinion that when the court has expressed the intention to appoint, that – Yeah. Yeah. For all intents and purposes, there is an appointment. And the reason I say that is because I did have – just recently read that published opinion. But the agency, DHS, has at this point neglected to provide me required information because they claim I'm appointed – I have an appointed attorney that I need to refer these questions to. And because I am not formally appointed, they can't very well – I'll tell you both sides of the fence. So I wanted to speak with you – Right. About it because – if I could – I wanted to speak with you about it because, number one, the issues

that I approached Ms. Crafton with are not necessarily legal questions, and I'm not asking for legal advice. I am asking for information that she is required to provide, let's say, an unrepresented person. But I wanted to also discuss this in the framework of – jurisdiction because I'm aware that DHS does not have – I understand that jurisdiction, subject matter jurisdiction, might attach at the time that the child is taken into custody. However, personal jurisdiction is not done away with. And I have not been provided not a shred of paperwork. And that constitutes a lack of jurisdiction to move against me and my child. And that – that matters because when I did appear specially, and for the purpose of challenging jurisdiction through lack of service of summons and petition, because I don't have the substance and dependency of – I'm not aware of these two things as prescribed by statute. And so when I fill out that court-appointed paperwork, I'm aware that I would be granting the court jurisdiction, and I'm not willing to just help them cure that defect, which right now – which right now is fatal to their case.

[00:04:07 --> 00:04:14][SPEAKER_01]
Sure. And I can talk to you more about that once I'm formally appointed. Those are legal questions.

[00:04:15 --> 00:04:42][AP]
But, Ms. Mahoney, you're not hearing my point, though. If I do that – But what you're saying completely disregards and almost just dismisses everything I just said. No, no, no. Because my issue is that I'm not – I'm not dismissing it at all. Well, I'm not trying – but what you're saying to do is to do exactly the opposite. You're saying to do exactly the opposite of what I'm saying, which is to help DHS and the court cure their defect.

[00:04:44 --> 00:04:51][SPEAKER_01]
Well, they will continue on with the case unless you litigate this issue. And so I would have to – Oh, absolutely. Right.

[00:04:51 --> 00:05:18][AP]
Oh, absolutely. I have a motion that I have that I'm filing now that I – because I think today would make 10 days. So I just wanted to make you aware before – and I'm not rejecting counsel. I'm still demanding that I be presented – afforded. The benefit of counsel. However, I am not required to seek that out, nor should I have to until they cure their defect.

[00:05:20 --> 00:05:20][SPEAKER_00]
Okay.

[00:05:20 --> 00:05:31][SPEAKER_01]
Well, I cannot advise you on this matter or really respond in any meaningful way until I am appointed on your case. And I'm not trying to dismiss you at all. I understand your concerns.

[00:05:32 --> 00:05:45][AP]

I think that's a breach of the rules of professional conduct. I think that you have already – for all intents and purposes, the DHS can refer to you as, hey, you need to talk to your lawyer about this. Well, number one, why are you contacting me?

[00:05:46 --> 00:05:56][SPEAKER_01]
That was a mistake because I'm not yet your lawyer. I was contacting you the day of the shelter because I was representing you on that day, but I was not formally appointed to your case.

[00:05:57 --> 00:06:04][AP]
But then how would you have represented me at the shelter hearing? In what capacity? In just that limited capacity, right?

[00:06:05 --> 00:06:08][IM]
Yeah, it is just in that limited capacity.

[00:06:08 --> 00:06:13][AP]
Okay, so that's what I'm talking about.. But that's all I'm – but see, that's all I'm talking about. I'm not talking about the reason for removal.

[00:06:13 --> 00:06:20][IM]
But then any – yes, but any advice about jurisdiction and any ability to – No, no, no.

[00:06:20 --> 00:06:50][AP]
That is – that squarely falls within the shelter hearing. That is a square, undeniable issue that must be adjudicated at first presence in the court, at your first appearance. So if you were going to be representing me that day, under the capacity – Under the capacity of a shelter hearing, that's where I am. I'm not moving forward with DHS because they have – Well, we are not at the shelter anymore. So I am not – Well, no, we are. No, we are because I have 10 days to request a hearing.

[00:06:51 --> 00:06:53][IM]
Ms. Penn, I understand your concern.

[00:06:53 --> 00:07:49][AP]
What I'm hearing from you is that this call is being recorded. Ms. Mahoney, I'm not an easy client. I'll let you know that right now. I know the rules. I read the state – Oregon State Bar's opinion. I read DHS's – I read their question. And I disagree with you about – I read their question. And I disagree with you about – I can complete my sentence. You have been interrupting me since we started this call. You have been interrupting me since I started this call. I would appreciate it if you wouldn't violate the rules of professional conduct by allowing me to express to you what type of representation that I would need. You are. There's an opinion by the Oregon State Bar that, no, if you're going to represent me in the capacity of a shelter hearing, then I would like for you to represent me in that capacity. There is, because I have 10 days to request a re-hearing. Ms. Ashley, I'm – No, it's Ms. Penn. No, it's Ms. Penn. No, it's Ms. Penn.

And I do have 10 days to request a re-hearing. So I still am very well within that time with 20 minutes.

[00:07:49 --> 00:07:51][IM]
That's something that your court-appointed attorney could do,but I am not your court-appointed attorney,

[00:07:51 --> 00:08:55][AP]
No, that's something I can do without a court-appointed attorney. It's what I'm expressing to you. That's what I'm telling you. You don't want to listen. You don't want to hear me out for me to finish my thought, but I do have a resolution that is actually consistent with your position. But you don't want to listen to me, which for some reason I don't know why DHS and their attorneys do this. I've done this. I've fought the agency for three years and run my children back. I've learned your rules. I've learned their rules. I've learned the court's rules very well. And I do nothing but study it so as to be prepared for this day. So I'd like for you to know that I have a position that is consistent and aligned with what you're telling me. However, I will not move or change my position to help DHS cure a DHS. In fact, that is absolutely fatal to their case. But I would hope that if you are in a position to represent me from a shelter hearing perspective, that you could fulfill your duty as the court appointed you for that purpose to accomplish that. That's all I'm asking for.

[00:08:55 --> 00:08:57][IM]
But we are past the shelter hearing, and order has already been made on that shelter hearing.

[00:08:57 --> 00:09:06][AP]
However, it is not final until after the 10 days. I know the rules. Today makes the 10th day, and I'm requesting that in the next 10 or 15 minutes before the end of the day. Okay.

[00:09:06 --> 00:09:10][IM]
What are you asking me to do today? I'm not. What are you asking me to do today?

[00:09:10 --> 00:10:11][AP]
What I'm not. Thank you. I appreciate that. Thank you. Resolution focused. I am asking for you to communicate the defect. As you're well aware, that is true. I'm not asking for you to take sides with me. I'm asking for you to apply the law as it is intended to be applied without considering who's a coworker or a colleague. I don't have any concern about, you all's professional workplace. I only am concerned about how the law is applied, and you and I both know that they don't have jurisdiction over me because they fail to effectuate service. And I would like for that to be mentioned. That's all. Because I'm not required to seek out your services. What do you mean? What do I mean? What do I mean is that, what I mean is that per ORS 419B, I think it's 848 or 838, they are required, they are required to effectuate service by defect.

[00:10:11 --> 00:10:17][IM]

Yeah, I understand your position on that. I have a slight disagreement with you about your interpretation of that. But what are you asking me to do about that?

[00:10:17 --> 00:11:00][AP]
Well, in light of the fact that DHS has failed to provide the substance and tendency of this case by providing a summons, which would necessarily implicate a personal appeal, without that and a petition so that I can prepare a defense, I'm not required to engage the court, yet the court is required to honor my parental rights. So I'm asking for you to simply state the defect, which is undeniable.

[00:11:00 --> 00:11:02][IM]
What do you mean by state the defect? What do you mean? What are you asking me to do?

[00:11:02 --> 00:11:18][AP]
Well, DHS has failed to effectuate service, and that's not, you don't get to effectuate service, you get to move jurisdiction after that. So as long as they have effectuated service, Ms. Penn is not, as long as they have not, right.

[00:11:19 --> 00:11:41][IM]
And I disagree with that interpretation of the law, but I can advise you more about that once I am appointed on your case. I am not right now, so I'm not going to engage in any further conversation with you about this. I have another call scheduled in two minutes, so I need to let you go. But once you fill out that court-appointed paperwork,

[00:11:41 --> 00:11:46][AP]
I'm happy. I won't be.I won't be. Not a second before they effectuate service, because I'm not required to. Thank you. Thank you.

EXHIBIT F

Email from Clerk Kimberly Beck, September 9, 2025

[Insert screenshot or PDF of Beck email here.
Replace this placeholder with:
`\includepdf[pages=-,pagecommand={}]{Kimberly Beck - FTA.pdf}`
or for a JPG/PNG screenshot:
`\includegraphics[width=\textwidth,keepaspectratio]{ExhibitF-BeckEmail.jpg}`
]

EXHIBIT G

Transcript: AshLe' Penn and Trial Court Administrator Richard Moellmer

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`\includepdf[pages=-,pagecommand={}]{Richard Moellmer Transcribed.pdf}`
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EXHIBIT I

Mother's September 8, 2025 Written Filing

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EXHIBIT J

Recording and Transcript: AshLe' Penn and DHS Supervisor Sonya Faulkner

AshLe' Penn - **00:00**

This call is now being recorded. Hello, Ms. Walker.

Sonya Faulkner - **00:04**

Hi, Ashley. How are you?

AshLe' Penn - **00:06**

I'm well, thank you. How about yourself?

Sonya Faulkner - **00:08**

I am also. Well, I saw. I think you just sent me an email.

AshLe' Penn - **00:12**

I did. I have to apologize. I have to apologize. That was a very late send. There's no excuse. I understand that. If you need more time to review those documents, I totally understand. I still would be interested in finding out maybe what you have to share about consulting with your team. But I totally get the fact that was a late send and that's my fault. I apologize.

Sonya Faulkner - **00:36**

Yeah, no problem. I mean, I. I will need some more time, obviously, to go through those. I just saw that there's quite a few attachments in it, so that will take you a little time, obviously, outside of this call, and then I can certainly follow up. But I also have your email address, too, so that could be helpful as well. So. Yes, ultimately.

AshLe' Penn - **00:56**

Sorry, I just wanted to say really quickly. They're not substantive. I mean, there may be quite a few of them, but, you know, a screenshot of a text message or, you know, so I didn't want to inundate you. There's more, but I wanted to keep it to the basis of our call. So please do continue. Sorry. Okay.

Sonya Faulkner - **01:12**

No, no problem. So I did meet with Dave and Dave's supervisor and then also had Lori, who's the program manager, over permanency there as well, to just talk through what efforts that we've been making essentially with you and your case and how we're progressing with your case. Because I think that keeping a focus now on how we move forward and resolve your case and achieve the outcomes that are best for your child and really like the direction that we need to go. I did ask them a lot of questions specifically about visitation. Where we're at in the legal process, what the barriers are, where we're at in the process with meeting with you so that, you know, like, what the expectations are and how we resolve this case moving forward.

Sonya Faulkner - **02:08**

And ultimately, I know it sounds like maybe you and Dave have not been able to meet in person, and also visits have been extremely limited. So I did ask him to move forward with setting up regular meeting times with you and also regular visitation times so that you can regularly see your daughter. I don't know if you have heard from Dave at all about getting any of those consistent appointments set up.

AshLe' Penn - **02:44**

So I wanted to take a moment to. I think you know, put the car in drive and went 0 to 60 there very quickly. I think one of the main issues that, you know, it is imperative that it be resolved is the initiation of this case. I understand. I hear what you just said about the direction that you feel is necessary for us to go forward. However, DHS receives benefits for my daughter, and I'm not sure that those benefits that are being conferred on DHS have been earned, as is required by the assurances that the state of Oregon has provided the federal government in order to be eligible for those benefits. And I'll, you know, come, you know, from the ground level and I'll, you know, sort of go up to the 30,000 foot approach.

AshLe' Penn - **03:51**

And what I'm saying, which is that when DHS was first involved with I, Mira, back in April, her father was arraigned and he was taken into custody temporarily. She was with me. One of your workers came and dropped her off directly from the grand jury. Dropped her off here at my home. She stayed with me until DHS elected to remove the no contact order and approached the court about as Amira. You can see Amira and her dad are very close. And I, I am a proponent of that relationship because I have a father and I adore him. And so I would not take that person away from my daughter. Now, with that being said, Amira was here enrolled in my school district here and my, you know, for my address. She had started her new school, was here with her siblings.

AshLe' Penn - **04:58**

And DHS says to her father and obviously to her, you know, we don't see any problem with Elmira and her dad having contact and we don't see him as a threat. And I'm not weighing in on that position. What I'm saying is that DHS specifically took a position that Alquan was a safe placement for her and that they could be together now moving forward. We're in September 6th incident take place. And since the April incident, I requested records from dhs. I have been. I've had individuals in my home interviewing my children for hours. Okay. And those interviews are on the backs of I do. I'm on a rolling request right now for records because there's a backlog. But some of the records I've received have been to the tune of, I'm withholding my children from their father, I'm hiding them.

AshLe' Penn - **06:05**

I am not safe, I'm violent with absolutely no violent history in my life. And the records that I've received to this point, and they haven't been completed, were requested before her removal in September, on September 6, from the both of us. Now, I sought those records out because I wanted to know what it was that DHS has in its files related to my ability to parent. If there's an issue, please tell me now. Like I said, I've had workers here in my home interviewing my children and I wanted to be sure that we didn't have between myself and DHS any unresolved issues. So I ordered these records and at first, I mean I didn't get them until after she was removed on September 6th. I just got the first record in like December.

AshLe' Penn - **07:04**

Now I say all that to say this and I hope you're still following me because it's important to know that yes, I understand your obligation is to ensure visits and to ensure that the reunification process takes place along the path that you promised. Not you. Your agency has promised to comport removals and reunification. It's the policy of the state of Oregon to help families improve in areas where they may have deficits related to a child's safety, security and well being. Now I'm not sure how that policy plays into and you'll see this record, but I'm sure that you have heard, you know something about this on September 6th when they said Ms. Penn, come get your daughter because I haven't gotten any founded allegation letters, I haven't gotten any indication that there's been any deficit in my ability to parent.

AshLe' Penn - **08:09**

DHS tells me we want you to come pick up Amira, that she has, she's in the hospital. I immediately said oh my gosh, my heart stopped. I contacted immediately. I have no transportation presently, but come get your daughter. And I said absolutely. Let me just figure this out. I send my uncles to pick her up to bring her to me. And between 5:40 when they say Ms. Penn, we need you to come get your daughter. And 559 when apparently Almira made a statement of self harm that even you recognize was recanted if it was said at all. And in that 19 minute period, it would have been necessary and required for DHS to, especially related to the allegations that you told me, exist.

AshLe' Penn - **08:55**

It would have been necessary for DHS to observe some type of behavior of mine that places my daughter in harm's way. It would have been necessary for DHS to offer a service in order to prevent the removal. And instead DHS removes Amira from me punitively. And I know this is a fact because I have, I sent you the messages. There was no parental behavior that constitutes a danger to my child in the 19 minute span between being willing to release her to me and taking protective custody of her. And then on the seventh, hiding her from me, putting her on a list at

the hospital where if I call, oh, we don't have a patient by that name. So now my daughter's in the wind. I have no idea where she is.

AshLe' Penn - **09:52**

Now this is all on the back of me sending my uncles to pick her up so that they can, they have, obviously they have transportation and Ms. Kiddo or Ms. Bennett saying we're not going to release her to just anybody. I said, well, this is not just anybody. That's my family, that's her family. She knows them. The same family that she didn't want to release to prior to in that 19 minute span is the same family who she's been placed with. Now, luckily that I provided them. But even notwithstanding the fact that my parental capacity was not measured or assessed at all in that 19 minute span because this is related to Amira's statement of self harm, but also lack of parental capacity assessment, lack of services offered, there's a family member who now can mitigate that removal.

AshLe' Penn - **10:42**

These things are huge considerations to the court. And then also with those considerations, then you have your DHS workers going into a shelter hearing and telling the judge that I refused a safety plan as evidence of my incapacity of my deficits in parenting. And I know this is the case because, you know, I have an uncle who was there, I have a daughter who relayed this to me and I requested the records from the court. Been denied the records, although I'm entitled to them. So. And that's not your wheelhouse. But now we have DHS giving the court as is required, either a verbal account, verbal testimony under oath, or it has to be written affirmation of what circumstances they see as the problem. But, and you'll see this in the records, I was never offered a safety plan.

AshLe' Penn - **11:39**

DHS did not do a single thing to try to prevent, quote, unquote, prevent the removal because this is not related to me. Her statement of self harm, if they had conducted a parental assessment would have been mitigated by the fact that I have personally and voluntarily taken it upon myself to educate myself as to youth and suicide. And it's a continuing ongoing thing. I support her mental health services that she's been in prior to her removal. So there's not much more that as a parent that I can do. And I have my daughter on the phone crying and saying, mama, I want to come home. I said, baby, I tried. That's why uncles are there. But now they don't want you. Now they don't want you to come to me. She says. I never said that.

AshLe' Penn - **12:22**

And I know that, you know, DHS was there. So to wrap it up, yes, I understand that your obligation is to push this case right on forward. Ashley, here's your. Here's your visit. But my position, Ms. Faulkner, is that you don't have the authority to do that because of the way you initiated this case. And I'm looking for substantiation for how this case was initiated surrounding those facts.

Sonya Faulkner - **12:51**

Absolutely. I understand where you're coming from. The complexity is that the court did rule.

AshLe' Penn - **12:58**

Well, hold on. So if we're going to say that the court ruled a certain way while also hearing and acknowledging that you heard that there was a false set of information given to the court, do those things reconcile as a human, as a mother, if you are, As a woman, as a DHS leader, do those things reconcile in your. In your. In. Within you to say that knowing that your agents went to the court and told them something that's not true.

Sonya Faulkner - **13:36**

This is an area where we're going to have to probably agree to disagree. I don't have any confirmation that anything that our employees told the court was inaccurate based on the information they had at the time.

AshLe' Penn - **13:51**

So Mr. Milne was based on the information they had at the time. Okay. So Mr. Milne was there at this shelter hearing. It's been confirmed to me. And you'll know this because I'm sure you've had an opportunity to review the report or the. Whatever statement was made by your agents at the removal shelter hearing. It's very simple. Did your. Did your workers tell the court that I refused a safety plan?

Sonya Faulkner - **14:30**

I have not had access to the recording of the court hearing.

AshLe' Penn - **14:35**

So I'm not. It's a. It's a question that you might be able to. Even outside of that, it's something that you can ascertain for yourself by talking to your employees. And when you do, if you do decide to take this on, and I think that because I'm resolution focused, I'm not here to batter you or to just be problematic. This is an issue that has to be addressed because your position as Department of Human Services is not to break the law. And that is what happens when you tell the court under oath something that's not true. I won't call it what it is. We both know what it is. But your job is not specifically to uphold the law. And that's why you're in the. Not you specifically. The agency does.

AshLe' Penn - **15:32**

What it does is so that everything, as Far as parents and families are concerned, has been within a lawful scope, a sort of community standard that's recognized and accepted. And so I would have to say, Ms. Falkner, I think that's

an issue that I mentioned weeks ago when we had our call.

AshLe' Penn - **15:53**

And it is a matter of great import because if you take into consideration the fact that there was no safety plan offered to me, which is factual and can be observed through the documentation that you'll have the chance to review, but also by talking to your workers and also getting that case court hearing recording, when you are able to confirm that DHS provided the court with information that's not true to develop a prima facie case of neglect or abuse, are you still able to reconcile saying to me, and this is not to be answered now, because you really wouldn't be able to, but I'm confident that you'll find that statement was made. It was a big deal. As a matter of fact, it was a huge talking point in that hearing. The fact that mom denied a safety plan. No, I didn't.

AshLe' Penn - **16:53**

Because that safety plan was offered to me on October 1st. DHS did nothing to prevent this removal. Nothing. They did so punitively because I exercised my rights to have my family assist me with my child. Now, one question that you could ask, answer now is my family was available as the same placement that you placed her in. And I know that in Oregon, you don't have to parent alone. You have the right to receive help from your family, and families can and likely in the position that she's in now, fully staying with my uncle would mitigate a removal on top of the fact that you recognized in our last call that the statement that caused them, Ms. Kiddo and Ms. Bennet to take her into protective custody was a statement of self harm, not parental harm. But then also that statement was recanted.

AshLe' Penn - **17:53**

So all of these facts being considered, Ms. Faulkner, I had all the confidence that you would look at the factual basis, the factual circumstances of this case and identify with integrity the deficits in your agency's conduct. And yet you call and you go 0 to 60. Here's your visits. You see, Amira was removed from me without your agency doing nearly any of what it's required to do before removing a child from their family. And based on something that has nothing to do with me. Nothing. Now, my daughter having suicidal ideation, that does have to do with me. I'm not saying that doesn't. That's why I took the classes. That's why I take the classes.

AshLe' Penn - **18:48**

But you guys didn't measure that parental capacity and her safety and well being means that much to me that I wanted to do so and I did so on my own dime and time. But DHS telling me that she made a statement of self harm does not mean that one or both parents is acting dangerously. And it does not mean that one or both parents lacks the capacity to parent. And I think you recognize that or perhaps you can tell me how it does mean that.

Sonya Faulkner - **19:18**

So what my understanding is from my review and from talking to the people involved in the case is that in the moment when your daughter was making the statements, it was related to suicidal ideations. If she had to live with you because of that, there was an immediate risk of having her placed with you at that time or doing a safety plan

with you, which is why those steps were not taken. Then they went to the shelter hearing. That opened some opportunities for you to appear in court and present your side of the case, the variances and also once there was a recantation for that to be considered. One of the problems is you. No, it's okay.

AshLe' Penn - **20:07**

One of the, one of the problems.

Sonya Faulkner - **20:08**

At this point is that you haven't appeared in court still. So even given the recantation, given your concerns about our agency not continuing to try to make safety plans with you.

AshLe' Penn - **20:24**

No, that's not my concern. That's not my concern. That's not my concern because my concern is not whether or not you continue to try to make safety plans with me. That's absurd. My issue is that you have casted me, characterized me as being non cooperative and not wanting to be involved. However, that's the farthest thing from the truth. In fact, the truth is that recantation matters and Amira making a statement about not wanting to live with me and possibly self harming due to that, it still does not mean one or both parents is acting dangerously or one or both parents lacks the capacity. It still doesn't mean that you cannot infer that from that statement if it was to be said and not recanted, if it was said at all. But that's still not the issue.

AshLe' Penn - **21:23**

The issue is that the prima facie evidence that has to go before the court is under oath and when you are able to ascertain that your agents gave the court incorrect information, did not offer any services. Now you're saying that step wasn't even taken when in that shelter hearing. It was, but I abused it.

Sonya Faulkner - **21:45**

I'm saying that in an immediate danger situation, our requirements and how we assess and how we move forward in cases is different depending on the circumstances.

AshLe' Penn - **21:55**

Well, the circumstances can't be a knee jerk interpretation of a 14 year old's emotional state in a hospital bed. You have to conduct a certain modicum of an investigation. You have to be able to assess a parent's ability. What if the

statement wasn't recanted and that was still true, that still doesn't mean that to remove my child. Because I've educated myself. I am at, you know, I have processes in place to not leave her alone. I have a direct communication line with services that have assisted Amira before the removal. There's. There's things that are going on because I knew that my daughter is having suicidal ideations. No one asked me if I knew. I did, and I have. I can prove that I did because I've talked to community partners about it. And so what I'm saying is, what if it wasn't recanted?

AshLe' Penn - **22:58**

That still doesn't mean immediate removal of hiding my child. Now, I haven't seen her in months. It still doesn't mean that according to your own agency's rules and policies. So even if what you're saying is true, notwithstanding the fact that, yes, I knew my daughter was taken into protective custody on the night of the 6th, I did not know that when that shelter hearing was. You know why? Because no one tried to serve me until October 14th. So how am I expected to be in court when I.

Sonya Faulkner - **23:32**

People went to your home, they tried to contact you.

AshLe' Penn - **23:35**

I told them that I wasn't home. I was at work. I told them that this is not. This is not athletes unavailable. I. I made myself available to dhs. Substantially. Like I said, your agents have been in my home interviewing my children for hours. I told them I was not home. I did. I. Was I required to be home because my daughter was in the hospital? No, but what I did do is I sent my family in my place to retrieve my daughter, to bring her to me. That's protective. That is parental capacity. I didn't leave her at the hospital. I provided DHS with a resource that is recognized in Oregon as a mitigating factor to removal. At worst, at best, that's protective, Ms. Faulkner. And it still doesn't mean removal. And we both know this.

AshLe' Penn - **24:30**

I'm familiar with your 3000 some odd page manual. It still does not mean removal because DHS has not assessed my parental capacity. Now, I told Mr. Milner, Mr. Milne, that I. I've appeared twice. You have records that you'll, you know, consult about the court clerk taking actions that she's not authorized to take by telling me that I can't file anything electronically. If I want to file, I got to do it in person. Listen, I don't have transportation. I'm supporting three children. I am here making this work. I'm sending you this filing because that was the very next day that I could. When she was taken on Saturday, that was the very first day that I could, and I did, and she refused to accept my filing. That's not your wheelhouse. That's not your circus.

AshLe' Penn - **25:28**

However, the court is aware, and that clerk knows, and you'll see, I have appeared in a way that Oregon recognizes as appearance through a written filing. That's legal. That's not me making this up. Oregon recognizes appearance by filing. As a matter of fact, you can go to an eviction court and be there physically and not have filed your answer,

and the court will tell you failed to appear. Isn't that. Isn't that funny? I did appear. So don't tell me I haven't been to court, because I have. And I challenged your agency then, as I do now, and everyone just sort of wants to keep this wheel, this vehicle running without acknowledging the substance of what I'm saying. Because what I'm saying means, okay, she makes the statement. It's not recanted. Still not a removal. If she does recant it, why the removal?

AshLe' Penn - **26:28**

My family is there. Why the removal? That statement means I'm acting dangerously or don't have the capacity to parent. There's still a removal. I did appear. Still a removal. You're. No one is acknowledging what I'm saying to your agency, and it makes so much sense for you not to, but I had all the confidence in the world that you would as a leader in your business, and I'm confident you know what I'm saying. Ms. Faulkner.

Sonya Faulkner - **27:06**

I understand your frustration.

AshLe' Penn - **27:09**

No, that's not. Please don't tell me. Please do not. No, please do not categorize. Please do not. My emotions. Please respond to what I'm saying. Do not comment on my emotional state. But that's not for you.

Sonya Faulkner - **27:23**

Some of it is because even though you may have looked at and studied our manual, some of your interpretations are not. For example, your interpretation of our requirement to thoroughly assess your protective capacity or your parental capacities and do a safety plan with you prior to removal.

AshLe' Penn - **27:45**

I never said that. I never said that DHS is required to give me a safety plan. I never said that. What I said was, before the agency can remove a child from Their parents from their home. You are required to do one of two things. You have to find a parent is a danger. That's one. A parent presents themselves a danger or.

Sonya Faulkner - **28:15**

You have within our rule and policy regarding the suicidal.

AshLe' Penn - **28:23**

Or the second. No, no, you don't get to. There's children out here who says, I hate you, mom, I don't want to live with you, Mom. While my daughter is on the phone with me, with DHS present, with my uncle's present, telling me, mama, please come get me, mama, I want to come home. I never said that. Oh, no. DHS jumps in and says, oh, we got to end this call. We got to end this call. And from that moment forward, I've seen and talked to my daughter on a handful of times as she's telling me, mama, come and get me, mama. And I said, baby, I am. I can't come and get you myself. But look, I tried. I never said that. So as this is happening, as my daughter is reaching out to me, while you're saying I, like I was.

AshLe' Penn - **29:10**

I'll go back to it. There's two things that you are required to do. You either are required to find that a parent presents a danger or if the child presents a danger to themselves that a parent does not have the capacity to mitigate. You don't get to just tell parents that children's emotional states are so much that we're just taking them from you. That's not what the agency is able to do. And I know you know that. So I never said that you had to do a safety plan with me. But what I did say is, did you find that I present a harm to my child? Because those are the two allegations. Vulnerable parents acting dangerously vulnerable parents, inability to parent or lack of capacity. No, it doesn't seem like a self harm statement fits that.

AshLe' Penn - **29:58**

So let's go look at the self harm statement. Okay, well, it was recanted. Oh, really? Okay, well even still, let's just act like it wasn't. So even if it wasn't, now we have a parental issue of does this parent deserve to lose their child? Because we think so without assessing the ability of this parent to be a parent to their child. That's not what that means, Ms. Faulkner, and you know that's not what that means. I still get to be a parent to my child, especially because I've taken measures to be prepared for that, because I knew. And it still doesn't mean I lose my child to you. And you'd have to reconcile that with Me. What other understanding is not interpreted correctly? Because I know for a fact based on you just saying that now that my interpretation is spot on.

AshLe' Penn - **30:54**

Her self harm statement does not mean one or both parents acting dangerously. One or both parents like the capacity to parent. If one if the lacks the capacity to parent. You're saying a self harm statement necessarily means has to be that then why is that even a condition or why is that even an allegation lacks the capacity to parent. You can't say that without assessing that. That's the problem and that's irreconcilable. You can't claim that I don't have the capacity to parent if you didn't assess it.

Sonya Faulkner - **31:40**

How would you like to move forward? Ashley?

AshLe' Penn - **31:42**

I want my daughter home and I want my daughter home now. Here's the thing. I recognize that this vehicle is so far down a 60% grade hill. I get that. But what DHS now needs to do. DHS lied to the court. DHS is lying to the federal government. You did not prevent that removal. You did not assess parental capacity. You did not offer services. You failed to serve me. DHS has done nothing that it's supposed to do. And I have requested records prior to removal. I was here the first time you took her from her dad. I was here the second time you took her from her dad. I sent my family to help. I have the textbook case of parental capacity in this regard. You're not able to do what you're doing and then tell me be grateful for your visits.

AshLe' Penn - **32:39**

So you need to fix that record. And I told Mr. Milnes I want to accept service. I would love because I want to have the opportunity to go to the court and give my side on the upright. Because like I said, I've appeared twice. But nobody wants to acknowledge that. Because apparently I'm not playing you all's game the way you want me to play it. But here's the thing. That record is flawed. And if you add up all of these things, mitigating family recanted statement, daughter wanting to be with me, not assessing capacity, not having any allegations of harm, your case will be dismissed and my daughter will be returned. But DHS doesn't want to do that.

AshLe' Penn - **33:26**

DHS doesn't want to go to the court and say, listen, court, we may have overextended our representation of what we did offer this family and what we know about this. Stanley. We didn't actually look at mom's parental capacity. We didn't actually assess if mom is able to parent. And we really don't have any instances of her acting dangerously with regard to the safety of this girl. Your case would be dismissed. And that's not what you want to do. So you won't do it, even though you're required to do this. I'm not making any of this up. You have the records now. You didn't offer services. And I can go back through this again and again with each and every one of you the same exact way, because I live this. That is my daughter. Carried her, love her. We don't deserve this.

AshLe' Penn - **34:20**

And you're doing it because. Why you think you're doing something good? Why you have no allegations against me? Why.

Sonya Faulkner - **34:36**

We have cases on a regular basis where as we continue to assess and work with a family, exactly what you just said occurs. Where we get new information or our change or the information we go. I'm not saying in your. I'm saying in general we. Because I don't want you to think that we are just here. You are trying to withhold your child from you.

AshLe' Penn - **34:59**

You are.

Sonya Faulkner - **35:00**

Our goal is to reunify.

AshLe' Penn - **35:02**

And in order to do that, we.

Sonya Faulkner - **35:04**

Have to be able to work with you so that.

AshLe' Penn - **35:06**

No.

Sonya Faulkner - **35:06**

No. Are inaccurate or things have changed. We can go into court and present that information.

AshLe' Penn - **35:13**

No, you can. I didn't lie to the court. You did. And when I say you, I mean your agency. I didn't go to the court and lie. And I told Mr. Milnes, I said, please listen, Mr. Mill, I want to accept that service. I am going to accept your offer of service and I'm going to return the offer for you to fix your record. There's only one way, Ms. Faulkner. To abstain or ameliorate perjury. There's only one way. And that is for you to. To go to the court. Otherwise, I can go to the court and we can talk about this the hard way. I mean, I'm not threatening you. I'm telling you. There's only one way to fix perpetrate, and that is for you to fix it. That's. There's only one way. And you can read that by statute. I encourage you to.

AshLe' Penn - **36:06**

If you're going to lie to the court, you're required to go back to the court and tell them the truth. That's it. And. And whatever you are trying to allude to about receiving new information or something like that. Ms. Faulkner, I repeat to you, a child statement of self harm alone is not grounds for a removal. The way that you have taken my daughter, it's not because you have included an allegation that a parent lacks the capacity to parent with regard to that statement. But you can't say that because you haven't assessed that. So what new information? What, that she recanted it? You know, I can I unders what I'm saying to you. I'm confident that you know that I'm operating with a full set of information here as far as your obligations, your duties. I know I can feel that.

AshLe' Penn - **37:12**

And so I need for you to reconcile what I'm saying, not generalizing what your agency may or may not do or has not done. I feel for those families. I'm talking about my daughter.

Sonya Faulkner - **37:35**

Just for clarification, the purposes of my generalization was I don't want you to think that we are intentionally trying to withhold your daughter from you. You are agency is to actually reunify as quickly as possible.

AshLe' Penn - **37:49**

I'm sorry, the goal of your agency is not to reunify as soon as possible. What you just said means that it's necessarily assumed that removal is the default. And I know that even a child that's under the court's custody placement with a parent is still the preference. Removal is not the default. And that's what your statement necessarily infers. When it's not. Reunification means removal is not get our dofine. Well, that's what you just said. You said our goal, that's what we do. Our goal is to reunify. No, it's not. When your goal is not. Because in order to reunify, you have to remove first.

Sonya Faulkner - **38:36**

Once a removal occurs, our goal is to reunify as quickly as possible.

AshLe' Penn - **38:41**

But that's, but that's too narrow of a scope. Your scope is not to reunify. It is to ensure the wealth, the health and well being of children while with their natural families first. That's why there's a requirement that you prevent the

EXHIBIT 13

removal. That's why otherwise that wouldn't exist. But your goal is to ensure the safety and well being of children with their natural families, not. Oh, we'll get them back to you as soon as we can. That's what you're saying. But that's too narrow of a scope. Your policy of the state of Oregon is. This is not. This is not an interpretation. This is not an interpretation. The beginning of ORS 419B states that it is the state's policy to ensure the safety and well being of children with their natural families. That is under the policy statement of 419B.

AshLe' Penn - **39:44**

I'm not interpreting this that's what legislation has said. And so if your goal is just to reunify as soon as possible, then you just remove left and right and just hope to get them back as soon as possible. No, we need to evaluate for this case how this case was initiated. Because although systems are perfect, people are not. And systems are run by people your agents employed. Some personal actions in this case, I'm sure. And I know because I've had the opportunity to assess some of the records that have come that are outrageous, to be honest. And I haven't quite undertaken having that record fixed with DHS administratively. But some of the things that your agents have said about me. Outrageous, totally unboxed, totally unbounded. I'm violent and unstable. That was in one of the reports between conversation between two. That's gossip.

AshLe' Penn - **40:50**

That's literally gossip without having any substantiation for such a claim as they're coming to my home and seeing my children happy and healthy and taken care of. On the back of that, so you are punitively taking my child. And only because. And I'm not saying this as an attack on you or whoever's involved, but it necessarily means that, because what I'm saying is true, it's indefensible. You have not been able to reconcile the issues that I've mentioned, which are real, verifiable, documented. Like I said, I record all my calls. Everything's in writing or recorded. And that is because DHS taught me that. But now you have that information in your lap and you still want to squarely address me and say, here's your visits. Be grateful. That's not great.

AshLe' Penn - **41:56**

Going to accomplish the resolution here because of the way that your agency has comported itself up until this point. And we're talking about a serious violation.

Sonya Faulkner - **42:10**

We're talking about the right to set a court hearing and go in front of the judge and express.

AshLe' Penn - **42:17**

Absolutely do. And if that's the way that you want to do this, Ms. Foster, if you just want totally close rank and say, listen, hey, take it up with them, we lied. So what? We know that we did things that we aren't supposed to do. So what? Ask them. Tell them if that's how you want to do this. Ms. Faulkner, it can be very costly to your agency. And I assure you this is not going to be an instance that this goes quietly because it is personal for me. That's my baby. And your agency, you just. I don't know what happens to you all when you hear this information and you're not able to engage it with me in the way that's necessary for you to be able to substantiate your position.

AshLe' Penn - **42:59**

Like, I've said a few things about the policy of the state of Oregon, the basis for removal, the allegation of parental capacity versus statement of self harm. Like these things are real. And when I mention them to you all, I understand at the social worker level that it's difficult to engage me in the nuance. But someone of your position, I'm really disappointed because you are now doing what they do and acting as if everything I'm saying, I'm misinterpreting it. How? And you still have yet to tell me that.

Sonya Faulkner - **43:40**

I'm doing my best to try to. To move forward so that we're still the goals of this case.

AshLe' Penn - **43:48**

We are not. The goal is not to move forward. The goal is not to move forward. The goal is to assess backwards. Because that matters for your ongoing payments for Almira. It matters. That's why you have to assert that you prevented the removal, because otherwise she's not eligible for those payments. But you didn't prevent the removal. You didn't even attempt to. Yet that doesn't matter because we're all just moving forward, right?

Sonya Faulkner - **44:21**

I'm really satisfied to help Ashley.

AshLe' Penn - **44:24**

I don't know how you're helping. Ms. Faulkner. Please don't say things that don't mean anything. That doesn't mean anything. You have not been able to tell me how I have misinterpreted one thing. One. What is this? What which part?

Sonya Faulkner - **44:40**

I have expressed to you how you misinterpreted.

AshLe' Penn - **44:45**

That you guys are required to do a safety plan. I've never said that.

Sonya Faulkner - **44:50**

No, no, you told me attempted to notify you of the shelter hearing on multiple occasions.

AshLe' Penn - **44:56**

No, you did not have to serve you. In multiple occasions you tried to serve me. Wait, wait, wait, wait. Ms. Actually, let me finish. No, let me finish. No, Ms. Lori told me that you're not even required to serve me. That's her position.

Sonya Faulkner - **45:12**

We are not required to physically serve you for a shelter hearing.

AshLe' Penn - **45:16**

We are required to make efforts to notify you cannot be reconciled, Ms. Faulkner. But you're telling me we don't have to serve you for a shelter hearing, but you also have to know when the shelter hearing is so that you can come to try to prevent the removal. What? While we.

Sonya Faulkner - **45:30**

I'm saying we don't have to physically serve you a summit for a shelter hearing. We have to make our best effort to notify you. It's occurring.

AshLe' Penn - **45:39**

No one said that you had to give me a service of summons. A text message would suffice. That didn't happen. A text message between the same women who were in my daughter's hospital room. They could have told me what

room and. And what time. They didn't. That is not diligent efforts. And under any scope, would that be diligent? That not a voicemail, not a text message. Oh, but you tried to serve me without sending a message by the most commonly used form of communication today, one in which we used days before. When I'm being told, oh, no, we're taking her from you, we're hiding her from you. Take it up with the court. Okay. All right, cool. I'll be there. When and where. Oh, I couldn't get that. Okay, so let me just.

AshLe' Penn - **46:35**

I still have to see parents still have to make a living. We stop the word. So here, let me appear through my filing as is recognized by Oregon. No, not that either. What you're saying still doesn't reconcile because I did appear. I have appeared. Your agency has cast me as non cooperative because apparently when people have rights that they want observed, they're not cooperating. And you haven't told me what I've misinterpreted. What you've told me is not again, I record my calls. Ms. Faulkner. I never said that I believe that DHS is required to do a safety plan. What I did say is that DHS is required not to lie under oath about having done so. Definitely.

Sonya Faulkner - **47:23**

I expect I don't have any information at this point that anybody has lied under oath.

AshLe' Penn - **47:27**

Perfect. When you find that out have a right.

Sonya Faulkner - **47:30**

You do have a right.

AshLe' Penn - **47:31**

When you find that out, I don't get to fix it. Your agents. Your agents get to go down for that. You. I have the. Yes, I know you don't believe, Ms. Faulkner, in this conversation that I'm fully aware of my rights. Do you. Do you believe that you need to counsel me as to what my rights are? Like who you're talking to on the phone? Do you believe that's constructive and that you need. That you can counsel me about what my. You don't. You're not picking up that I'm aware of what my rights are? Because if I have given a different impression that I'm not sure what my rights are? Let me say it very clearly. I'm very aware. And here's some more of my rights. I have the right not to open my front door for my own safety.

AshLe' Penn - **48:18**

I have the right to parent My children, I have the right to lawful processes being brought against me without fabricated information. I have the right to the administrative processes that your agency has outlined for itself and to receive the benefit of your observance of those rules and policies. I have those rights as well. Are you aware of those rights that I have? Because we're not acknowledging them.

Sonya Faulkner - **48:49**

You also have a right to do to due process and representation as part of this process.

AshLe' Penn - **48:54**

Perfect. Now, I don't want.

Sonya Faulkner - **48:55**

All I'm doing is encouraging you to.

AshLe' Penn - **48:58**

Access, to look past all of your errors and not acknowledge any of them. Essentially. Let's be real. You're telling me that everything that I'm saying, which is substantial. It is. It is case changing factual information of which I've sent you documentation. Not all of my documentation, but a good portion of it. Your own agents, conversations with me. What you're telling me, what you're trying to do is you're trying to have me overlook your violations of my rights and move forward without acknowledging that. What you're actually asking me is to endorse your unlawful conduct. That's what that amounts to. Unless you can tell me which part I'm misinterpreting. Which part don't I have right?

Sonya Faulkner - **49:56**

If I were to find any unlawful or concerning information in the record or any information that we perjured ourselves, I would absolutely handle that with our employees and also notify the police.

AshLe' Penn - **50:11**

Perfect. And when you do that, I do.

Sonya Faulkner - **50:13**

Not have any information as of now. I would encourage you do not need some information. I will review that.

AshLe' Penn - **50:19**

Okay. I would just encourage you not to be, you know, indifferent to receiving it. Like, yes, you don't have the information, but I would ask that you seek it out now that you're aware of it. Because when you do find it, we will have another conversation, I'm sure, because it changes the scope of this case.

Sonya Faulkner - **50:39**

As I'm saying, as always, when I'm asked to look at a case, I always look at it from a very neutral perspective. I'm only looking at the facts, the information.

AshLe' Penn - **50:49**

I'm not asking for anything else. I'm not asking for anything more. That's all I'm asking. I'm not asking for you to grant me any favors. I'm not asking for you to look at me as a person. Nothing about what I'm saying has anything to do about my content or my character. I'm asking you to assess the facts of the case that are on the record and to reconcile the facts of the case, which is one or both parents behaving dangerously, one or both parents lacked the capacity to parent. Well, the behaving dangerously, I think that's pretty obvious. That's not even in the realm of being possible because, I mean, there's founded allegation letters, but lacking the capacity to parent, you have to tell me. And one of the tactics that government actors use, I found, is the word misinterpretation. Oh, you're misinterpreting that.

AshLe' Penn - **51:42**

You don't understand. Pat me on the head. You're just. You don't have the ability. You just don't understand. I'm sorry. Ms. Faulkner, everything that I'm saying to you in this conversation has been lucid. It has been cohesive. It has been aligned with your policies, your practices, your rules, and all your governance. I would encourage any opportunity for you to take to educate me on what not. You know. I'm not asking for you to teach me your rules. I'm asking for you to tell me which part of what I said doesn't apply the way that it does in my mind. Ashley, you don't get the fact that we don't have to do a safety plan. No, I never said that. I'm being very intentional, being very specific. Specific? Excuse me? I never said you were required to do a safety plan.

AshLe' Penn - **52:39**

I just said if you're going to allege that a parent doesn't have the capacity to parent, you better have looked at that first. That's a requirement. And that makes sense. So if you could please take the opportunity as you're seeking this information out, when you do find it, we can talk again. But I'm asking for you to tell me which part of your process I've gotten wrong. Or have you gotten it wrong?

Sonya Faulkner - **53:11**

I will review the information that you have and then we will reconnect. How does that sound?

AshLe' Penn - **53:17**

That sounds like better than I've been able to receive so far. Thank you. You'll let me know?

Sonya Faulkner - **53:26**

Okay. Thank you. Is there anything else you want me to know before I review that information and we set up our next appointment?

AshLe' Penn - **53:35**

I think that I'm walking out of this conversation hoping that you've been able to at least notate each of my issues independently and then also, as you know, a collection, because, I mean, the individual parts are what they are, but as a. As a whole, when they're put together, it changes the scope of exactly what each of those little pieces mean. So I just. I'm hoping that you're able to pick up what it is that I've been able to communicate to you today and show you through that documentation. And I just have to say that I'm not confident that you are picking it up only based on your responses, but I think that might be bureaucracy and institutional. So I'm hoping that's the case and that you are going to look into the issues as I presented them.

AshLe' Penn - **54:37**

And if you have any questions for me as far as what my issues are, please do let me know.

Sonya Faulkner - **54:43**

Yeah, absolutely. And if you'd like, I can send you a response in email with my understanding of what we've talked about to date to give you kind of the reassurance that I heard you and I know what scope I'm looking at. When I continue to review the information you sent and the record, I'll return.

AshLe' Penn - **55:06**

A response with a summary of this call. Okay, thank you. Thank you. Bye.

Sonya Faulkner - **55:14**

Bye.

EXHIBIT K

Washington County Presiding Judge's Order No. 343 on Remote Proceedings, signed February 15, 2024 (Judge Rebecca D. Guptill)

IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR
WASHINGTON COUNTY

In the Matter of Remote Appearance	)	Presiding Judge Order No. 343 (Corrected)
	)	ORDER PERMITTING REMOTE APPEARANCE IN CERTAIN MATTERS & REMOVING ALL COVID RESTRICTIONS & PROTOCOLS

1. Pursuant to Chief Justice Order No. 23-028, the following presiding judge orders issued as precautionary measures due to the Covid-19 pandemic and the precautions therein are no longer necessary or required and are hereby superseded by this order and no longer in effect:

    a. PJO -281CV
    b. PJO 283CV-A
    c. PJO 283CV-B
    d. PJO-284CV
    e. PJO-286CV
    f. PJO 291CV
    g. PJO 292CV
    h. PJO 300CV
    i. 301CV
    j. PJO 305CV
    k. Corrected PJO 315CV
    l. PJO-317CV
    m. PJO-318CV

    Further, to the extent these orders rescinded or superseded prior Covid "CV" orders this order does not serve to revive those orders, but instead supersedes them all.

2. Unless otherwise specified in paragraph 3 below, all court appearances shall be held in person and any request to allow remote appearance shall be made by motion pursuant to ORS 45.400.

3. Pursuant to Chief Justice Order No. 23-028, which authorizes and encourages the Presiding Judge to allow certain circuit court proceedings to be held remotely, the following types of hearings may be held remotely without the need to file a motion pursuant to ORS 45.400, so long as the attorney or party provides advance notice to the court and includes full contact information for the party appearing remotely:

    a. Juvenile proceedings per attached Exhibit 1.

b. Initial protective order applications for Family Abuse Prevention Act (FAPA), Elderly Persons and Persons with Disabilities Abuse Prevention Act (EPPDAPA), Sexual Abuse Prevention Act (SAPA), Stalking Protective Orders (SPO), Extreme Risk Protection Orders (ERPO).
c. Treatment Courts.
d. Civil Case Assignment
e. Landlord Tenant
f. Fitness to Proceed / Aid and Assist hearings.
g. Civil commitment hearings.
h. Contested Family Abuse Prevention Act (FAPA) hearings:
    i. Petitioners only on contested Family Abuse Prevention Act hearings may be allowed to appear remotely for their contested hearing only if they are appearing at the Washington County Family Justice Center or Family Peace Center and provide advance notice to the Court pursuant to paragraph 5 below.
    ii. Respondents in contested Family Abuse Prevention Act (FAPA) hearings must appear in person at the Washington County Circuit Court or submit a motion pursuant to ORS 45.400 for remote appearance. These motions shall be submitted electronically on an expedited basis to the judge assigned to the case or in the case of matters assigned to a *Pro Tem* judge, to the Chief Family Law Judge.
i. Exceptions to this list may be allowed by the judge assigned to the case. Whether an exception is allowed and the manner in which it may be allowed, shall be at the discretion of that judge.

4. Notwithstanding any other provision of this order, if the constitution requires an in-person appearance or proceeding, then the appearance or proceeding must be conducted in-person. If a party contends that a remote appearance or proceeding conducted remotely results in a violation of the party's rights, then the party may file a motion seeking an order that the appearance or proceeding be conducted in person. This paragraph applies to any crime victim who contends that an order results in a violation of the victim's constitutional rights.

5. Providing Notice to the Court: For matters designated as not requiring a motion for remote appearance, parties shall provide notice in such manner as the court-provided guidelines require.

6. Electronic Exhibits: Electronic exhibits being submitted for remote hearings shall comply with the court-provided guidelines for the type of hearing for which they are being submitted.

IT IS SO ORDERED.

DATED this 15th day of February, 2024

Circuit Court Judge, *Rebecca Guptill*

Rebecca D. Guptill
Presiding Judge

EXHIBIT 1 – JUVENILE PROCEEDINGS

Dependency / TPR cases:

Hearing type	Appearance type
Shelter	Hybrid- In person for all attorneys, parents, and anyone offering testimony. All others may appear via Webex.
Settlement Conference/Pre-trial	Hybrid- In person for all attorneys, parents, and anyone offering testimony. All others may appear via Webex.
CJ Trial	All attorneys, parents, or parties intending to offer argument to appear in person. Witnesses to appear in person. All others may appear via Webex.
Review/Permanency	Optional in person or via Webex.
Contested Permanency	All attorneys, parents, or parties intending to offer argument to appear in person. Witnesses to appear in person. All others may appear via Webex.
TPR First Appearance	Hybrid- In person for all attorneys, parents, and anyone offering testimony. All others may appear via Webex.
TPR- PTC / BISC	Hybrid- In person for all attorneys, parents, and anyone offering testimony. All others may appear via Webex.
TPR Trial	All parties to appear in person. Witnesses to appear in person.
Guardianship reviews	In person.

Attorney to be in person if client is in person. If it is unknown if client will be in person, then attorney to appear in person.

Delinquency cases

Youth **in** Custody:

Hearing type	Appearance type
Pre-Lim/Detention reviews/Pre-trial/Admission/PV	Youth to appear via Webex. Juvenile Court Counselor and attorneys to appear in person. All others may appear via

	Webex.* If making admissions, signed paperwork required in Court.
Disposition	Youth, Juvenile Court Counselor, and attorneys to appear in person. All others may appear via Webex.*
CJ Trial	Youth, Juvenile Court Counselor, attorneys, and witnesses to appear in person. All others may appear via Webex.*

Attorney to be in person is youth is in person.

Youth **Out** of Custody:

Hearing type Appearance type

Pre-Lim/Pre-trial/Admission/Disposition/PV	Youth, Juvenile Court Counselor, and attorneys to appear in person. All others may appear via Webex.*
CJ Trial	Youth, Juvenile Court Counselor, attorneys, and witnesses to appear in person. All others may appear via Webex.*

Hearing type Appearance type

Waiver	Youth, Juvenile Court Counselor, and attorneys to appear in person. All others may appear via Webex.*
Reviews	Webex upon request.
Restitution	If contested, Youth, Juvenile Court Counselor, attorneys, and witnesses to appear in person. All others may appear via Webex.* If stipulated, then all may appear via Webex. If youth is in an OYA program, youth may appear via Webex.

*Victim Services is required in person if the victim is in person. If the victim does not appear or appears via Webex, then Victim Services may appear in person or via Webex.

Emancipations – In person.

Expunctions – Optional in person or Webex for all parties.

At this time, Webex sessions will continue to be generated for all hearings.

Exceptions to formally requested by written motion.

PROPOSED ORDER

IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR WASHINGTON COUNTY — JUVENILE DEPARTMENT

In the Matter of: AL-MIRA DAVIS, DOB: June 23, 2011, A Child.	Case No.: 25JU04261 **ORDER ON MOTHER'S POST-HEARING OMNIBUS MOTION**

This matter came before the Court on Mother AshLe' Penn's Post-Hearing Omnibus Motion. The Court, having reviewed the motion, the supporting memorandum, the supporting declaration, the Affidavit of Non-Service, the exhibits, and the record, and being fully advised: **IT IS HEREBY ORDERED** as follows:

1. The September 8, 2025 shelter order and all subsequent placement and removal orders entered in this proceeding are hereby STRICKEN, pursuant to ORS 419B.803(1)(a) (personal jurisdiction requires service as provided in ORS 419B.812 to 419B.839, which has not been accomplished) and ORS 109.717 (child custody determinations bind only those served or who submitted to jurisdiction).

2. Mother's written objection to referee jurisdiction under ORS 419A.150, filed September 8, 2025, is SUSTAINED. All further proceedings shall be heard before a duly elected or appointed circuit court judge.

3. Pursuant to ORS 419B.803(1)(a) and ORS 109.717, no order entered in this proceeding is enforceable against Mother, on the grounds that Mother has not been served in accordance with ORS 419B.812 to 419B.839 and has not submitted to jurisdiction.

4. The jurisdictional enforceability question is set for hearing on a priority basis pursuant to ORS 109.721 (requiring the court to give calendar priority to jurisdictional questions raised under the UCCJEA), before any further proceedings on the merits. Hearing is set for: _____.

5. DHS failed to comply with the mandatory pre-removal requirements of OAR 413-015-0415 (supervisor consultation), OAR 413-015-0425 (present or impending danger determination), and OAR 413-015-0455 (imminent physical damage finding) prior to exercising protective custody on September 6, 2025.

6. DHS failed to make reasonable efforts to prevent removal and to assess available relative placement resources as required by ORS 419B.340, ORS 419B.192, OAR 413-040-0006, and 42 U.S.C. § 671(a)(15).

7. The summons was not served within the thirty-day deadline imposed by ORS 419B.812.

8. The shelter order was entered on the basis of a materially false statement of fact and is vacated on that independent ground.

9. The ten-day rehearing window under ORS 419B.297 has not run as to Mother, because Mother was never served and never received notice of the shelter order.

10. The referee's denial of Mother's access to case records and the imposition of an in-person appearance condition not found in ORS 419A.255 is declared ultra vires, unconstitutional, and void. The clerk is ordered to produce copies of the complete case file to Mother within five (5) days of the date of this Order, without condition of in-person appearance, pursuant to ORS 419A.255.

11. DHS shall produce all records responsive to Confirmation ID #36508 within seven (7) days of the date of this Order.

12. The systematic application of an in-person appearance condition to Mother's filing rights, records access, hearing participation, and reunification services is found to constitute an unconstitutional condition in violation of the Fourteenth Amendment to the United States Constitution and *Perry v. Sindermann*, 408 US 593 (1972).

13. DHS shall state in writing, within seven (7) days of the date of this Order, the specific current allegations of dependency jurisdiction against Mother, consistent with any petition on file, or shall state in writing that no such allegations exist.

14. DHS shall comply immediately with its statutory duties under ORS 419B.340, ORS 419B.192, and 42 U.S.C. § 671(a)(15).

15. Counsel for Mother is appointed immediately pursuant to ORS 419B.195(1).

16. Independent counsel for Al-mira Davis is appointed pursuant to ORS 419B.195(3), on the grounds that Al-mira's expressed preferences and independent interests require representation separate from and independent of DHS.

17. Al-mira Davis is ordered returned to Mother's care immediately.

Dated: _____

_____

Circuit Court Judge

Washington County Juvenile Department

CERTIFICATE OF SERVICE

I hereby certify that on _____, 2026, I served a true and correct copy of the foregoing Motion, supporting Memorandum, Declaration, Affidavit of Non-Service, Exhibit List, and Proposed Order upon the following parties by the method indicated:

Party / Counsel	**Address**	**Method**
Oregon Department of Human Services, Child Welfare Division	_____	U.S. Mail / Email
Guardian ad Litem	_____	U.S. Mail / Email

_____

/s/ AshLe' Penn !

AshLe' Penn

Mother, Appearing *In Propria Persona* (Dependency)

Special Appearance Only

CERTIFICATE OF READINESS

(UTCR 5.100)

I, AshLe' Penn, appearing *in propria persona*, certify that this motion is ready for filing and that all exhibits referenced herein are attached or will be lodged with the court contemporaneously with this filing. I further certify that I have made a good-faith effort to confer with opposing parties as set forth in the Certificate of Conferral above. Dated: _____

_____

/s/ AshLe' Penn !

AshLe' Penn

Mother, Appearing *In Propria Persona* (Dependency)

Special Appearance Only